Law of Evidence (BSA, 2023)

Module-wise Notes and Exam Answers

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LAW OF EVIDENCE (Bharatiya Sakshya Adhiniyam, 2023): Module-wise Explanation

> The BSA came into force on **1 July 2024** and replaced the Indian Evidence Act, 1872 (IEA). It has **170 sections**. Old IEA numbers are given in brackets.

MODULE 1: INTRODUCTION TO LAW OF EVIDENCE

1. What the law of evidence does

Every case, civil or criminal, turns on **facts**. A judge was not present when the events happened, so they decide on the **material placed before them**. The law of evidence answers three questions:

1. **What facts may be proved?** This is **relevancy** (ss. 3–50).
2. **How must they be proved?** This is **proof**: oral, documentary and electronic evidence (ss. 51–103).
3. **Who must prove them, and how are witnesses examined?** This is **burden of proof and production of evidence** (ss. 104–169).

It is an **adjective (procedural) law** and a **lex fori**, meaning the law of the court where the case is heard.

2. Historical background

- **Ancient India**: Hindu law recognised three means of proof: **documents (lekhya), witnesses (sakshi) and possession (bhukti)**, along with **ordeals** (divine tests).
- **Muslim period**: oral testimony and the oath were central.
- **British period**: the presidency towns followed English law, while the mofussil areas had confusing, non-uniform rules. Several attempts were made to codify.
- **1872**: **Sir James Fitzjames Stephen** drafted the **Indian Evidence Act, 1872**, a clear and logical code that worked well for over 150 years.
- **2023**: the **BSA** replaced it. The structure and most of the language were kept. The main changes were updating the law for the **digital age** and removing colonial expressions.

Objectives: to prevent courts being misled by irrelevant matter, to bring certainty and uniformity, and to ensure fair and speedy trials.

Scope (s.1):

- Applies to **all judicial proceedings in or before any court**, including **courts-martial**, both civil and criminal.
- **Does not apply** to **affidavits** or to **arbitration** proceedings.

3. Structure and key provisions of the BSA

Part	Sections	Content
I: Relevancy	1–50	Preliminary; res gestae; admissions; confessions; statements of persons who cannot be called as witnesses; judgments; expert opinion; character
II: Proof	51–103	Facts that need no proof; oral evidence; documentary and electronic evidence; exclusion of oral by documentary evidence
III: Production and effect	104–169	Burden of proof; estoppel; witnesses; examination of witnesses; improper admission
IV	170	Repeal and savings

Main changes from the IEA:

- A “document” now **includes electronic and digital records** (emails, server logs, smartphones, SMS, websites, cloud data, voicemails, location data).
- “Evidence” includes statements given **electronically**.
- Electronic records can be **primary evidence**.
- **Secondary evidence** is widened to include oral and written admissions, and evidence of a person skilled in examining documents.
- A new **certificate format** for electronic evidence (s.63, in two parts).
- Sections are merged: IEA ss.24, 28, 29 became s.22; ss.25, 26, 27 became s.23.
- A **joint trial** now includes a trial **in absentia**.
- Colonial expressions are removed.

4. Basic definitions (s.2)

Fact (s.2(1)(f)):

- i. anything, state of things or relation of things that can be **perceived by the senses** (a physical fact); and
- ii. any **mental condition** a person is conscious of, such as intention, knowledge, good faith or opinion (a psychological fact).

Fact in issue (s.2(1)(g)): a fact from which the existence or non-existence of a **right, liability or disability** asserted or denied in the case **necessarily follows**.

- In a **criminal** case, the facts in issue are the **ingredients of the offence**. In a murder case, for example: did A cause B’s death, did A intend it, and was there grave and sudden provocation?

- In a **civil** case, they are the **issues framed** from the pleadings.

Relevant fact (s.2(1)(k)): a fact connected with another in any of the ways described in ss.3–50. “Relevant” means **legally relevant**, not just logically connected.

The fact in issue is the **main fact to be proved** (*factum probandum*). Relevant facts are the **evidentiary facts** that help prove it (*factum probans*).

5. Kinds of evidence

Evidence (s.2(1)(e)) covers:

- i. **oral evidence**: statements by witnesses, including those given electronically; and
- ii. **documentary evidence**: documents, including electronic records.

Kind	Meaning
Oral	What a witness says in court. It must be **direct** (s.55).
Documentary	Documents produced for the court’s inspection, including electronic records.
Real / material	Physical objects, such as a knife, clothes or fingerprints. The court can ask for them to be produced (s.55 proviso).
Primary	The original document itself (s.57).
Secondary	Copies and accounts of the document, allowed only in specified situations (s.58).
Direct	Evidence of a witness who personally **saw, heard or perceived** the fact.
Circumstantial	Evidence of other facts from which the fact in issue is **inferred**.
Hearsay	What a witness heard from someone else. It is generally **excluded**.

Circumstantial evidence can be enough to convict, but the chain must be complete. ***Sharad Birdhichand Sarda v. State of Maharashtra*** **(1984)** laid down **five golden principles**:

1. the circumstances must be **fully proved**;
2. they must be **consistent only with guilt**;
3. they must be **conclusive** in nature;
4. they must **exclude every other hypothesis** except guilt;
5. they must form a **complete chain** that leaves no reasonable doubt.

Hearsay is excluded because:

- it is not given on oath;
- it cannot be tested by cross-examination;
- the original speaker's demeanour cannot be seen;
- it can be distorted as it is repeated.

It is admitted only in exceptions such as res gestae, admissions, confessions and dying declarations.

6. Proved, disproved, not proved

- **Proved (s.2(1)(j))**: the court **believes** the fact exists, or thinks its existence so **probable** that a **prudent man** would act on the supposition that it exists.
- **Disproved (s.2(1)(c))**: the same test, applied to the fact's non-existence.
- **Not proved (s.2(1)(i))**: neither proved nor disproved.

The **"prudent man" test** applies to all cases, but the **degree of probability** required differs:

- in civil cases, a **preponderance of probabilities**;
- in criminal cases, **beyond reasonable doubt**.

7. Witness (s.124)

A witness is a person who gives evidence. **Everyone is competent** unless they cannot understand questions or give rational answers because of tender age, extreme old age, or disease of body or mind. (See Module 5.)

8. Presumptions: may presume, shall presume, conclusive proof

A **presumption** is an inference the court draws about a fact from other proved facts.

Type	Meaning	Rebuttable?	Example
May presume (s.2(1)(h))	The court **may** treat the fact as proved unless disproved, **or call for proof**. This is discretionary.	Yes	s.119: a person found with stolen goods soon after a theft may be presumed to be the thief
Shall presume (s.2(1)(l))	The court **must** treat the fact as proved **unless disproved**.	Yes	s.118: dowry death; s.120: absence of consent in rape
Conclusive proof (s.2(1)(b))	On proof of one fact, the other **must** be treated as proved, and **no evidence to the contrary is allowed**.	No	s.116: birth during a valid marriage proves legitimacy; s.35: judgments in rem

Appreciation of evidence: courts **weigh** evidence; they do not count witnesses (s.139). Minor discrepancies do not destroy credibility; what matters is whether the core of the

testimony is true (*State of U.P. v. M.K. Anthony*, 1985).

MODULE 2: RELEVANCE AND ADMISSIBILITY

1. Relevance vs admissibility (s.3)

Section 3 says evidence may be given **only of facts in issue and relevant facts, "and of no others"**.

Relevancy	Admissibility
Based on **logic** and connection	Based on **law and policy**
Asks: is the fact connected?	Asks: can it be received in court?
ss. 3–50	Rules of proof and exclusion

A relevant fact may still be inadmissible. For example, a confession to the police is relevant but barred by s.23, and privileged communications are relevant but protected. *Ram Bihari Yadav v. State of Bihar* (1998).

2. Res gestae (ss. 4, 5, 6)

Res gestae means "things done" as part of the **same transaction**.

s.4 (IEA 6): facts that are **so connected with a fact in issue as to form part of the same transaction** are relevant, even if they happened at slightly different times or places. What the accused, the victim or **bystanders said or did** during or **immediately** before or after the incident is admissible, even though it is technically hearsay.

Test: the statement must be **contemporaneous and spontaneous**, leaving **no time to fabricate**.

Cases:

- *R v. Bedingfield* (1879): a woman with her throat cut said "See what Harry has done". It was **rejected** because the act was already over. The decision is widely criticised.
- *Ratten v. R* (1972, Privy Council): the deceased's panicked phone call saying "get me the police" was **admitted**. The test is **spontaneity**.
- *Gentela Vijayavardhan Rao v. State of A.P.* (1996): a statement recorded **hours later** was **not** res gestae.
- *Sukhar v. State of U.P.* (1999): a statement made immediately after a shooting was admitted.

s.5 (IEA 7): facts that are the **occasion, cause or effect** of a fact in issue, or that show the **state of things** or **opportunity** for it. Examples: footprints, wounds, broken locks.

s.6 (IEA 8): motive, preparation and conduct.

- **Motive** explains why a crime was committed.
- **Preparation**, such as buying poison, shows planning.
- **Conduct before or after** the act is relevant if it influenced or was influenced by the fact in issue, for example **absconding**, hiding evidence, or keeping silent when accused.
- **Absconding alone is weak evidence** (*Matru v. State of U.P.*, 1971).

3. Identification: test identification parade (s.7)

Section 7 makes relevant facts that **explain or introduce** a relevant fact, or **establish identity**, time, place or the relationship of parties.

A **Test Identification Parade (TIP)** is held during investigation, usually by a magistrate, so that witnesses can pick out a stranger accused from among similar-looking people.

Value of a TIP:

- The **substantive evidence** is the **identification in court**. The TIP only **corroborates** it.
- A TIP is **not compulsory**, but if one is not held, an in-court identification of a stranger carries less weight.
- It must be held **promptly**, and the accused must **not have been shown** to witnesses beforehand.
- The accused cannot refuse to take part (this does not violate Art. 20(3)).
- TIP statements made before police are hit by s.181 BNSS (*Ramkishan Mithanlal Sharma*, 1955).

Cases: *Kanta Prashad* (1958); *Malkhansingh v. State of M.P.* (2003).

4. Things said or done by conspirators (s.8, IEA 10)

If there is **reasonable ground to believe** that persons conspired, then anything **said, done or written by any one of them in reference to the common intention**, **after the intention was first formed**, is relevant **against all of them**. This is based on the idea that each conspirator is the **agent** of the others.

Limits:

- There must first be **prima facie evidence** of a conspiracy.
- The statement must be made **while the conspiracy was alive**. Statements made **after arrest** or after the conspiracy ended are not covered (*Mirza Akbar v. King Emperor*, 1940).

Other cases: *Badri Rai v. State of Bihar* (1958); *State v. Nalini* (1999); *Navjot Sandhu* (2005).

5. “Otherwise irrelevant” facts (s.9, IEA 11)

Facts that are not otherwise relevant become relevant if they are:

- **inconsistent** with a fact in issue; or
- make it **highly probable or improbable**.

The classic use is the **plea of alibi**: if A was in Kolkata when the murder happened in Delhi, that fact is inconsistent with A being the murderer. The **accused must prove the alibi with certainty** (*Binay Kumar Singh v. State of Bihar*, 1997).

The problem: read literally, s.9 could let in almost anything, including hearsay and remote facts. Courts therefore apply it **narrowly**:

- the inconsistency or probability must be **high**;
- s.9 **cannot override** exclusionary rules such as hearsay or the bar on confessions.

6. Damages and custom (ss. 10, 11)

- **s.10**: in suits for damages, facts that help the court **fix the amount** of damages are relevant.
- **s.11**: when a **right or custom** is in question, the following are relevant:
  - **transactions** by which it was created, recognised or denied;
  - **particular instances** where it was claimed, exercised or disputed.
- A custom must be **ancient, certain, reasonable and continuous**.

7. State of mind and body; accident; course of business (ss. 12–14)

- **s.12 (IEA 14)**: facts showing a **state of mind** (intention, knowledge, good faith, negligence, ill-will) or a **state of body** are relevant when that state is in issue. The state of mind must relate to the **particular matter**. For example, if a person is found with many other stolen articles, this shows **knowledge** that goods were stolen. A previous conviction becomes relevant only where the previous offence itself is relevant.
- **s.13 (IEA 15)**: when the question is whether an act was **accidental or intentional**, a **series of similar occurrences** is relevant. For example, if several insured houses of the accused caught fire, this suggests the fires were not accidents. The same reasoning was used in *Makin v. A-G for New South Wales* (1894), where several babies' bodies were found in a backyard.
- **s.14 (IEA 16)**: the existence of a **course of business** is relevant to show that an act, such as posting a letter, was done.

8. Admissions (ss. 15–21, 25)

Definition (s.15): a statement, **oral, documentary or electronic**, that **suggests an inference** about a fact in issue or relevant fact, made by the persons described in the Act.

Who can make admissions (ss. 16–18):

- a **party** or its **authorised agent**;
- a party suing in a **representative capacity** (such as a trustee);
- persons with a **proprietary or pecuniary interest** in the subject matter;

- **predecessors-in-interest**;
- persons whose **liability must be proved** against a party, such as a debtor whose liability a guarantor has undertaken;
- persons **expressly referred to** by a party for information.

Proof (s.19): admissions may be proved **against** the maker but **not in their favour** (self-serving statements are excluded). The exceptions are statements that would be admissible under s.26 if the maker were dead, statements of **state of mind or body**, and statements relevant otherwise than as admissions.

Other rules:

- **s.20**: oral admissions about the **contents of documents** are not relevant unless secondary evidence is allowed, or the genuineness of the document is in question. The same applies to electronic records.
- **s.21**: admissions made **"without prejudice"** in civil settlement talks are **not relevant**. This encourages compromise.
- **s.25**: admissions are **not conclusive proof**, but they may operate as **estoppels**.

Value:

- An admission is **substantive evidence**, and can be used even if the maker was not confronted with it in the witness box (*Bharat Singh v. Bhagirathi*, 1966).
- **Judicial admissions** (in pleadings or in court) are **binding** (s.53).
- **Extra-judicial admissions** can be explained away.

9. Confessions (ss. 22–24)

"Confession" is **not defined**. It is a type of admission made by an **accused**.

Pakala Narayana Swami v. Emperor (1939): a confession must **admit the offence in terms, or at least substantially all the facts** constituting it. An admission of an incriminating fact, even a very serious one, is not a confession.

Palvinder Kaur v. State of Punjab (1952):

- an **exculpatory** statement is not a confession;
- a confession must be **read as a whole**, not cut into parts the prosecution likes and parts it does not.

Kinds of confession:

- **Judicial**: made before a magistrate under BNSS s.183. It can be the basis of a conviction if voluntary and true.
- **Extra-judicial**: made to private persons. It is **weak evidence**, and its value depends on the trustworthiness of the person who heard it (*Sahadevan v. State of T.N.*, 2012).

s.22: confession caused by inducement, threat, coercion or promise. A confession is **irrelevant** if it was caused by an inducement, threat, coercion or promise that:

- comes from a **person in authority**;
- relates to the **charge**; and
- gave the accused reason to think they would **gain an advantage or avoid an evil**.

If the effect of the inducement has been **fully removed**, the confession becomes relevant. A confession is **not** inadmissible merely because it was made under a promise of secrecy, through a trick, while drunk, or without a warning.

s.23: confession to police.

- **s.23(1)**: **no confession to a police officer** can be proved against the accused. The purpose is to prevent torture.
  - "Police officer" is understood in substance: an officer with police powers counts.
  - *Tofan Singh v. State of T.N.* (2020) held **NDPS officers are police officers**.
  - Customs officers are not (*Barkat Ram*, 1962).
- **s.23(2)**: a confession made **in police custody** to anyone cannot be proved, **unless made in the immediate presence of a magistrate**.
- **Proviso (IEA 27): discovery.** If information from an accused in custody leads to the **discovery of a fact**, then **only that part of the information which distinctly relates to the fact discovered** can be proved.
  - ***Pulukuri Kottaya v. Emperor* (1947)**: the "fact discovered" includes the **place of concealment and the accused's knowledge** of it.
  - So "I will show the knife **hidden under my bed**" is admissible, but "**with which I killed X**" is not.
  - *Deoman Upadhyaya* (1960).

s.24: confession of a co-accused. When persons are **tried jointly for the same offence**, a proved confession by one that affects himself and others **may be taken into consideration** against the others. A trial in absentia counts as a joint trial.

- It is **not substantive evidence**, only **lending assurance** to other evidence.
- *Bhuboni Sahu* (1949): it is the weakest kind of evidence.
- *Kashmira Singh* (1952): first marshal the other evidence, then use the confession.
- *Haricharan Kurmi* (1964).

Retracted confession: a confession later **withdrawn** by the accused, who claims it was forced.

- It is still **admissible**, and a conviction can rest on it if it was **voluntary and true**.
- As a **rule of prudence**, courts look for **corroboration** in material particulars (*Pyare Lal v. State of Rajasthan*, 1963; *Subramania Goundan*, 1958).
- The problem for courts is deciding whether the retraction is genuine or an afterthought.

Admission vs confession:

Admission	Confession
Defined (s.15)	Not defined
Civil and criminal cases	Criminal cases only
Made by a party, agent, predecessor and others	Made by the accused only
Suggests an inference	Directly acknowledges guilt
Not conclusive; may operate as estoppel	If voluntary and true, can be the basis of a conviction
Every confession is an admission	Not every admission is a confession

MODULE 3: STATEMENTS BY PERSONS

1. Statements by persons who cannot be called as witnesses (s.26)

Normally a person must come to court and testify. Section 26 is an **exception to hearsay**. It makes statements relevant when the maker is:

- **dead**;
- **cannot be found**;
- **incapable** of giving evidence; or
- cannot be brought to court **without unreasonable delay or expense**.

It covers eight situations:

- a. a **dying declaration**;
- b. a statement in the **course of business**;
- c. a statement **against the maker's interest**;
- d. an opinion on a **public right or custom**;
- e. a statement about a **relationship**;
- f. a statement in a **family deed or will**;
- g. a statement in a document about a transaction under s.11;
- h. statements of **feelings** of several persons.

2. Dying declaration (s.26(a))

A statement by a person about the **cause of their death** or the **circumstances of the transaction** that resulted in their death, in a case where **the cause of their death is in question**.

Indian law differs from English law:

- the declarant need **not** have been **expecting death**;
- it applies in **civil as well as criminal** cases.

Basis:

- *nemo moriturus praesumitur mentire*: a dying person is presumed not to lie;

- **necessity**: the victim is often the only witness.

Principles:

- ***Khushal Rao v. State of Bombay* (1958)**: a dying declaration can be the **sole basis of conviction** without corroboration if it is true and voluntary. A record made by a magistrate in question-and-answer form is preferred.
- ***Pakala Narayana Swami* (1939)**: "circumstances of the transaction" means circumstances with a **proximate relation** to the death. The deceased's statement that he was going to meet the accused was admitted.
- ***Laxman v. State of Maharashtra* (2002)**: a doctor's **certificate of fitness is not essential**. What matters is that the declarant was mentally fit.
- ***Paniben* (1992)** and ***Atbir* (2010)**: the declaration must not be **tutored** or imagined. If there are multiple declarations, they should be consistent. A declaration with serious infirmities needs corroboration.
- ***Sharad Birdhichand Sarda* (1984)**: the deceased's letters about cruelty, written weeks before her death, were admitted as circumstances of the transaction.
- A declaration by **signs or gestures** is valid.
- If the person **survives**, the statement is **not a dying declaration**. It can only corroborate or contradict their testimony.

3. Statements made under special circumstances (ss. 28–32)

- **s.28: books of account**, including electronic ones, regularly kept in the course of business. They are relevant but **not sufficient alone** to charge anyone with liability. In *CBI v. V.C. Shukla* (1998, the Jain Hawala diaries), loose sheets were not accepted as books of account.
- **s.29: entries in public or official records** made by a public servant in the course of duty, such as birth registers and school records.
- **s.30: maps and charts** published for sale or made under Government authority.
- **s.31: statements of public facts** in Acts and notifications.
- **s.32: statements of law** in law books, including digital ones.

4. How much of a statement to prove (s.33)

When a statement is part of a **longer statement, conversation, document, series of letters or electronic record**, only **so much as is necessary** to understand its nature and effect is proved. This is the **rule of completeness**: a statement should not be taken out of context.

5. Judgments of courts (ss. 34–38)

- **s.34**: an earlier judgment that **bars a second suit or trial** (res judicata or double jeopardy) is relevant.
- **s.35: judgments in rem**. Final judgments in **probate, matrimonial, admiralty and insolvency** matters confer or take away a **legal character**, and are **conclusive proof against the whole world**.
- **s.36**: judgments on matters of a **public nature** are relevant but not conclusive.

- **s.37**: **other judgments are irrelevant**, unless the judgment itself is a fact in issue. A civil judgment is generally not relevant in a criminal case on the same facts (*K.G. Premshanker*, 2002).
- **s.38**: a party may prove that a judgment was obtained by **fraud or collusion**, or delivered by a court **without jurisdiction**.

A judgment **in rem** binds everyone. A judgment **in personam** binds only the parties.

6. Expert opinion (ss. 39–45)

Judges cannot know everything. On matters of **foreign law, science, art, handwriting or fingerprints**, the **opinion of experts**, meaning persons specially skilled by study or experience, is relevant (s.39). The **Examiner of Electronic Evidence** under the IT Act is now expressly treated as an expert.

Related provisions:

- **s.40**: facts that support or contradict the expert's opinion.
- **s.41**: opinion on handwriting by a person **familiar with it**, and opinion of a **Certifying Authority** on electronic signatures.
- **s.42**: opinions on general custom.
- **s.43**: opinions on usages and tenets.
- **s.44**: opinion on relationship, shown by conduct.
- **s.45**: the **grounds** of an opinion are also relevant.

Problems with expert testimony:

- An expert is a **witness of opinion, not of fact**.
- The evidence is **advisory**: the **court decides**.
- Experts may be **biased** because one party pays them.
- Some fields are **inexact sciences**, handwriting in particular.
- Experts may **contradict each other**.

The court should not accept a bare opinion. The **reasons must be given** (*State of H.P. v. Jai Lal*, 1999).

Handwriting evidence can be acted on without corroboration if reliable, but caution is advised, and the court may compare writings itself (*Murari Lal v. State of M.P.*, 1980).

Ocular (eyewitness) evidence prevails over medical evidence unless the medical evidence **completely rules it out** (*Solanki Chimanbhai Ukabhai*, 1983).

7. Evidence of character (ss. 46–50)

"Character" means both **reputation and disposition**. Only **general** reputation and disposition can be proved, not particular acts.

Situation	Rule
Civil case, to prove conduct (s.46)	**Irrelevant**
Criminal case: **good character of the accused** (s.47)	**Relevant**
Sexual offences: the victim's character or past sexual experience (s.48)	**Not relevant** on consent
Criminal case: **bad character of the accused** (s.49)	**Irrelevant**, unless the accused first gives evidence of good character (then it is allowed in rebuttal), or bad character is itself a fact in issue. A previous conviction counts as bad character.
Civil case: character affecting damages (s.50)	**Relevant** (for example, in defamation)

MODULE 4: DOCUMENTARY EVIDENCE

1. Document and its proof

Document (s.2(1)(d)): any matter **expressed or recorded on any substance** by letters, figures, marks or any other means, intended to be used to record that matter. It **expressly includes electronic and digital records**, such as emails, server logs, files on computers and phones, messages, websites, cloud data, location data and voicemails.

Proof of contents (s.56): the contents of a document are proved by **primary or secondary evidence**.

2. Primary and secondary evidence (ss. 57–60)

Primary evidence (s.57) is the **document itself** produced in court. It also includes:

- each part of a document executed in **several parts**;
- each **counterpart**, against the party who signed it;
- each copy made by **one uniform process** (such as printing), as evidence of the contents of the others.

New electronic rules:

- a record stored in **multiple files** simultaneously or in sequence: **each file is primary evidence**;
- a record produced from **proper custody** is primary evidence unless disputed;
- a **video** stored and transmitted at the same time is primary evidence;
- **automated storage**, including temporary files, is primary evidence.

Secondary evidence (s.58) includes:

- certified copies;
- copies made by **mechanical processes**, and copies compared with them;

- copies compared with the original;
- counterparts, against parties who did not sign them;
- **oral accounts** by someone who saw the document;
- **oral and written admissions** *(new)*;
- evidence of a **skilled person** who examined voluminous documents *(new)*.

Best evidence rule (s.59): documents must be proved by **primary evidence**, except in the cases in s.60.

When secondary evidence is allowed (s.60):

- a. the original is with the **opposite party**, or with someone beyond the court's reach, and it is not produced after **notice** (s.64);
- b. its existence or contents are **admitted in writing**;
- c. the original is **lost or destroyed** without the party's fault;
- d. the original is **not easily movable**, such as an inscription on a wall;
- e. it is a **public document**;
- f. a **certified copy** is permitted by law;
- g. it consists of **numerous documents** and only the general result is needed.

A party must **lay the foundation** for secondary evidence before using it. A photocopy is not automatically admissible (*H. Siddiqui v. A. Ramalingam*, 2011; *J. Yashoda v. K. Shobha Rani*, 2007).

3. Electronic and digital records (ss. 61–63) and the IT Act

This is the most important modern topic.

s.61: an electronic record **cannot be refused** merely because it is electronic. It has the **same legal effect** as a paper document.

s.62: contents of electronic records are proved under **s.63**.

s.63 (IEA 65B): any computer output, whether printed, stored on CD or pen drive, or produced by any **computer or communication device**, is treated as a document and is **admissible without producing the original device**, if these conditions are met:

1. the device was **regularly used** by a person in lawful control;
2. information of that kind was **regularly fed** in the ordinary course;
3. the device was **working properly**, or any fault did not affect the record;
4. the output reproduces the information fed in.

A **certificate** in the **prescribed Schedule format** must be given. **Part A** is signed by the person in charge of the device. **Part B** is signed by an **expert**. It identifies the record, how it was produced, and the device's details (including hash values).

The case law story:

1. ***Navjot Sandhu* (2005)**: said a certificate was **not essential**. This was later overruled.

2. ***Anvar P.V. v. P.K. Basheer* (2014)**: s.65B is a **complete code**, and the **certificate is mandatory** for copies of electronic records. If the **original device** is produced, no certificate is needed.
3. ***Shafhi Mohammad* (2018)**: relaxed the rule where a party does not possess the device. This was overruled.
4. ***Arjun Panditrao Khotkar v. Kailash Gorantyal* (2020)**: **reaffirmed Anvar**. The certificate is a **condition precedent**. It can be filed **at any stage** before the trial ends. The court can summon the person who must issue it.

Other cases: *Tomaso Bruno* (2015), on the value of CCTV footage, and *Ravinder Singh* (2022), which held call records need a certificate.

IT Act, 2000 links:

- s.4: legal recognition of electronic records.
- s.5: legal recognition of electronic signatures.
- s.10A: contracts formed electronically.
- **s.79A**: Examiner of Electronic Evidence.

The IT Act also inserted the provisions on presumptions about electronic agreements, secure records, electronic signature certificates, electronic messages, and **5-year-old electronic records** (now BSA ss.85–87, 90 and 93).

4. Attested documents and proof of signatures (ss. 64–73)

- **s.64**: **notice to produce** must be given before secondary evidence is used under s.60(a), except in specified cases.
- **s.65**: the **signature or handwriting** of the alleged signer must be proved.
- **s.66**: **electronic signatures** must be proved, unless they are secure electronic signatures.
- **s.67: documents required by law to be attested** (such as a **will**, a mortgage, a gift deed): **at least one attesting witness must be called** to prove execution, if one is alive and available. For a **registered** document **other than a will**, this is not needed unless execution is **specifically denied**.
- **s.68**: if **no attesting witness** can be found, prove the handwriting of one attesting witness and of the executant.
- **s.69**: an **admission** of execution by a party is enough proof against that party.
- **s.70**: if the attesting witness **denies or forgets** the execution, it may be proved by other evidence.
- **s.71**: a document that did not need attestation is proved like an unattested one.
- **s.72**: the court may **compare signatures and handwriting**, and may ask a person present in court to write for comparison. It should do this with caution.
- **s.73**: verification of **digital signatures**.

In the case of wills, the person propounding the will must also **remove any suspicious circumstances** (*H. Venkatachala Iyengar v. B.N. Thimmajamma*, 1959).

5. Public and private documents (ss. 74–77)

Public documents (s.74(1)):

- records of the acts of the **sovereign authority**, **official bodies and tribunals**, and **public officers** (legislative, judicial and executive), in India or abroad;
- **public records of private documents**, such as registered deeds kept in a sub-registrar's office.

All others are private documents (s.74(2)).

- **s.75**: the officer having custody must give **certified copies** on payment of fees.
- **s.76**: public documents are proved by producing **certified copies**.
- **s.77**: proof of other official documents (Acts, proclamations and similar) by the Gazette or official copies.

Difference: a public document can be proved by a **certified copy** directly. A private document needs **primary evidence** or must meet the conditions in s.60.

6. Presumptions as to documents (ss. 78–93)

Shall presume:

- certified copies are genuine (s.78);
- records of evidence and confessions are genuine (s.79);
- Gazettes, newspapers and private Acts (s.80), and electronic Gazettes (s.81);
- electronic agreements, secure electronic records and signatures, and electronic signature certificates (ss.85–87).

May presume:

- maps made under Government authority (s.82);
- law collections and law reports (s.83);
- **powers of attorney** executed before a notary (s.84);
- foreign judicial records (s.88);
- books, maps and charts (s.89);
- **telegraphic and electronic messages** (s.90): that the message received matches the one sent, but **not who sent it**;
- documents not produced after notice were duly executed (s.91);
- **30-year-old documents** from **proper custody** are genuinely signed and executed (s.92);
- **5-year-old electronic records** from proper custody bear genuine electronic signatures (s.93).

7. Exclusion of oral by documentary evidence (ss. 94–95)

s.94 (IEA 91): when a **contract, grant or disposition of property** has been put in writing, or the law requires a matter to be in writing, its **terms can be proved only by the document** (or secondary evidence where allowed). Oral evidence of the terms is excluded. This is the **best evidence rule** for documents.

s.95 (IEA 92): once the document is proved, **no oral agreement** between the **parties** can be used to **contradict, vary, add to or subtract from** its terms.

Six provisos to s.95 allow oral evidence of:

1. **fraud, intimidation, illegality, mistake, want of capacity** or failure of consideration, i.e. facts that would invalidate the document;
2. a **separate oral agreement** on a matter the document is silent about, if consistent with it;
3. an oral **condition precedent**;
4. a later oral agreement to **rescind or modify** it (not if registration is required);
5. **usage or custom**;
6. facts showing how the language **relates to existing facts**.

Differences between s.94 and s.95:

s.94	s.95
Applies to **everyone**	Applies only to **parties** and their representatives
Bars oral evidence **to prove the terms**	Bars oral evidence **to vary the terms**
Covers unilateral documents too	Covers bilateral documents

Strangers to the document can show a variation (s.102). Oral evidence is also allowed to show that a document was a **sham**, never meant to be acted on (*Gangabai v. Chhabubai*, 1982; *Roop Kumar v. Mohan Thedani*, 2003).

8. Ambiguous documents (ss. 96–103)

- **Patent ambiguity**: the ambiguity is visible **on the face** of the document.
- **Latent ambiguity**: the language looks clear but becomes ambiguous **when applied to facts**.

Section	Rule	Example
s.96	Patent ambiguity: **no** evidence allowed to explain it	“I sell my horse for ₹1,000 **or** ₹1,500”
s.97	Plain language that fits the facts: **no** evidence allowed to show a different meaning	
s.98	Plain language that is **meaningless** when applied to facts: evidence **allowed**	“My house in Kolkata” when the person has none there but has one in Howrah
s.99	Language that fits **one of several** persons or things: evidence **allowed** to show which was meant	“My white horse” when the person owns two
s.100	Language that **partly** fits one set of facts and partly another: evidence **allowed**	
s.101	Evidence allowed to explain **illegible, foreign, technical or local** words and abbreviations	
s.102	**Strangers** may prove a variation of the document’s terms	
s.103	Savings for the Succession Act on wills	

MODULE 5: WITNESSES

1. Competency and compellability (s.124)

Competency means whether a person **can** testify. **Every person is competent** unless the court finds they cannot understand questions or give rational answers because of:

- tender years;
- extreme old age;
- disease of body or mind; or
- a similar cause.

A person of unsound mind is competent if they can understand.

Compellability means whether a person **can be forced** to testify. Generally every competent witness is compellable, except:

- **foreign sovereigns and diplomats**;
- the **President and Governors** (Art. 361);

- the **accused**, who is a witness only on their own request (BNSS s.353) and cannot be compelled (Art. 20(3)).

Some witnesses are compellable to appear but **privileged** from answering certain questions, such as judges and spouses.

Child witness:

- There is **no minimum age**. The test is understanding.
- The judge holds a **preliminary questioning (voir dire)** to check competency.
- Under the Oaths Act, a child **under 12** gives evidence without an oath, and it is still valid.
- Because children can be **tutored**, their evidence is examined carefully.
- Corroboration is **prudent but not required by law** (*Dattu Ramrao Sakhare*, 1997; *State of M.P. v. Ramesh*, 2011).

2. Witness unable to communicate verbally (s.125)

A witness who cannot speak may testify **by writing or signs** made in open court. This counts as **oral evidence**. The court must take the help of an **interpreter or special educator**, and the testimony must be **video-recorded**.

3. Parties, spouses and judges (ss. 126–127)

- **s.126**: in civil cases, the **parties and their spouses** are competent witnesses. In criminal cases, the **spouse of the accused** is competent.
- **s.127**: **judges and magistrates** cannot be compelled, except by order of a superior court, to answer questions about their **own conduct in court** or what they learned there as judges. They can be questioned about other events that happened in their presence.

4. Privileged communications (ss. 128–131)

Some relevant facts are **protected from disclosure** for reasons of **public policy**.

(a) Matrimonial communications (s.128):

- A married person **cannot be compelled** to disclose any communication made to them **during marriage** by their spouse.
- They are also **not permitted** to disclose it **without the consent** of the spouse who made it.
- **Exceptions**: suits between the spouses, and prosecution of one spouse for an offence against the other.
- The privilege covers **communications only, not acts**. In *Ram Bharosey v. State of U.P.* (1954), the wife could testify about what she **saw** her husband do.
- It continues **after divorce or death**, for communications made during the marriage. In *M.C. Verghese v. T.J. Ponnan* (1970), letters from a husband to his wife could not be used by her father in a defamation case.

(b) Affairs of State (s.129):

- No one may give evidence from **unpublished official records relating to affairs of State** without the **head of the department's permission**.
- However, the **court decides** whether the document really concerns affairs of State, and it may **inspect** the document privately.
- *State of Punjab v. Sodhi Sukhdev Singh* (1961).
- ***State of U.P. v. Raj Narain* (1975)**: the "Blue Book" on the Prime Minister's security.
- ***S.P. Gupta v. UOI* (1981)**: correspondence on judges' appointments was disclosed. The court balances the public interest in disclosure against the harm caused.

(c) Official communications (s.130): a public officer **cannot be compelled** to disclose communications made to them **in official confidence** if disclosure would harm the **public interest**.

(d) Information about offences (s.131): magistrates, police officers and revenue officers **cannot be compelled to reveal the source** of information about offences. This **protects informers**.

5. Professional privilege (ss. 132–134)

s.132: an **advocate** cannot disclose, **without the client's express consent**:

- communications made in the course of their professional employment;
- the contents of documents they saw;
- the advice they gave.

The duty **continues after the engagement ends**. The same duty applies to interpreters and clerks.

Exceptions:

- communications made **in furtherance of an illegal purpose**;
- any fact the advocate observed showing a **crime or fraud** committed since the engagement began.

s.133: the privilege is **not waived** just because the client gives evidence. If the client **calls the lawyer as a witness**, it is waived only for the matters on which the lawyer is questioned.

s.134: a client **cannot be compelled** to disclose confidential communications with their legal adviser, unless the client offers themselves as a witness. Then they may be asked about communications needed to explain their own evidence.

Reason for the privilege: clients must be able to speak **freely** to their lawyers for justice to work.

6. Other provisions as to witnesses (ss. 135–137)

- **s.135**: a witness who is **not a party** need not produce their **title deeds** or documents that could incriminate them, unless they agree in writing.
- **s.136**: no one can be compelled to produce a document that another person in their place could refuse to produce, unless that person consents.
- **s.137**: a witness **cannot refuse to answer** a relevant question on the ground that the answer may **incriminate** them. But the compelled answer **cannot be used** to arrest or prosecute them, **except for giving false evidence**. This is a **statutory immunity** that balances the court's need for the truth against the witness's protection.

7. Accomplice evidence (ss. 138, 119)

An **accomplice** is a **guilty partner** in the crime (a principal or an abettor). An **approver** is an accomplice who has received a **pardon** and testifies for the prosecution.

The two provisions appear to conflict:

- **s.138**: an accomplice is a **competent witness**, and a conviction based on **uncorroborated** accomplice evidence is **not illegal**.
- **s.119, illustration (b)**: the court **may presume** that an accomplice is **unworthy of credit unless corroborated in material particulars**.

How they are reconciled:

- s.138 is a **rule of law**: a conviction without corroboration is legally valid.
- s.119(b) is a **rule of prudence**: it is unsafe, so courts insist on corroboration.

The accomplice is unreliable because they are a criminal, may want to shift blame, and hope for a pardon. In practice, the rule of prudence has become almost a rule of law.

Corroboration must:

- be **independent**;
- **connect the accused** with the crime in a material particular (*R v. Baskerville*, 1916; *Rameshwar v. State of Rajasthan*, 1952).

One accomplice **cannot corroborate** another (*Haroon Haji Abdulla*, 1968). A **rape victim is not an accomplice**, and her evidence needs no corroboration (*State of Punjab v. Gurmit Singh*, 1996).

8. Number of witnesses (s.139)

No particular number of witnesses is required to prove any fact. **Evidence is weighed, not counted.**

In ***Vadivelu Thevar v. State of Madras* (1957)**, the court divided witnesses into three kinds:

1. **wholly reliable**: a conviction can rest on one such witness;
2. **wholly unreliable**: rejected;

3. **neither wholly reliable nor wholly unreliable**: corroboration is needed.

MODULE 6: BURDEN OF PROOF

1. Meaning and kinds

Burden of proof (*onus probandi*) is the obligation to prove a fact. It has two senses:

1. **Legal burden** (s.104): the burden of **establishing the case**. It **never shifts**. It lies on the party who asserts.
2. **Evidential burden** (s.105): the burden of **producing evidence**. It **shifts** back and forth during the trial as evidence comes in.

Standard of proof:

- **Civil cases**: **preponderance of probabilities**, i.e. which version is more probable.
- **Criminal cases**: **beyond reasonable doubt**. *Woolmington v. DPP* (1935): proving guilt is the prosecution's duty; this is "the golden thread" of criminal law. Reasonable doubt must be **real**, not fanciful.
- When the **accused** has to prove something, such as an exception or an alibi, they need only a **preponderance of probabilities** (*Dahyabhai Chhaganbhai Thakker*, 1964).

2. General rules (ss. 104–107)

- **s.104**: **whoever asserts must prove**. The person who wants judgment based on certain facts must prove those facts exist.
- **s.105**: the burden lies on the person **who would fail if no evidence at all were given** by either side.
- **s.106**: the burden of proving a **particular fact** lies on the person who wants the court to believe it, unless the law says otherwise. For example, the accused must prove their **alibi**.
- **s.107**: the burden of proving a fact **necessary to make evidence admissible** is on the person offering that evidence. For example, to use a dying declaration, the death must be proved. To use secondary evidence, the loss of the original must be proved.

3. Special burdens and exceptions (ss. 108–116)

- **s.108 (IEA 105)**: when an accused claims a **general exception** of the BNS (insanity, private defence, accident, intoxication) or a **special exception** (such as grave and sudden provocation), **the burden is on the accused**, and the court **presumes the absence** of those circumstances.
  - *K.M. Nanavati* (1962): provocation.
  - *Dahyabhai* (1964): insanity.
- **s.109 (IEA 106)**: a fact **especially within the knowledge** of a person must be proved by that person. For example, a train passenger must prove they had a ticket.

    - It **does not relieve the prosecution** of its basic burden (*Shambhu Nath Mehra v. State of Ajmer*, 1956).
    - In ***Trimukh Maroti Kirkan* (2006)**, when a wife died in the matrimonial home at night, the husband had to explain how. His **failure to explain** was a circumstance against him.
- **s.110**: a person shown to be alive within **30 years** is presumed alive. Whoever says they are dead must prove it.
- **s.111**: a person **not heard of for 7 years** by those who would naturally hear from them is presumed **dead**. Whoever says they are alive must prove it. **The date of death is not presumed.**
- **s.112**: once a relationship of **partners, landlord and tenant, or principal and agent** is shown, whoever says it has ended must prove it.
- **s.113**: a person **in possession** is presumed to be the **owner**.
- **s.114**: in a **fiduciary relationship** (lawyer and client, guardian and ward, doctor and patient), the person in **active confidence** must prove that the transaction was in **good faith**.
- **s.115**: presumption of guilt for certain offences in **disturbed areas**.
- **s.116**: **birth during a valid marriage**, or within **280 days** of its dissolution (the mother remaining unmarried), is **conclusive proof of legitimacy**, unless **non-access** between the spouses is proved.
    - *Goutam Kundu* (1993): DNA tests should not be ordered routinely.
    - ***Nandlal Badwaik* (2014)**: a reliable **DNA test prevails** over the presumption.
    - *Aparna Ajinkya Firodia* (2023): DNA tests only in exceptional cases, with the child's interest paramount.

Presumptions in offences against married women:

- **s.117**: **abetment of suicide** by a married woman within **7 years of marriage**, if she was subjected to **cruelty**. The court **may presume** abetment.
- **s.118**: **dowry death**. If, **soon before her death**, the woman was subjected to cruelty or harassment **for dowry**, the court **shall presume** the person caused the dowry death. "Soon before" requires a **proximate and live link** (*Satbir Singh v. State of Haryana*, 2021).

4. Court may presume certain facts (ss. 119–120)

s.119 (IEA 114): the court **may presume** any fact it thinks likely, considering the **common course of natural events, human conduct and business**. The illustrations include:

- a person found with **stolen goods soon after a theft** is the thief or a receiver;
- an **accomplice is unworthy of credit** unless corroborated;
- **official acts were regularly performed**;
- a state of things shown to exist **continues**;
- evidence that could be produced but is **withheld would be unfavourable** to the party withholding it (adverse inference);

- refusing to answer a question one is not legally required to answer suggests the answer would be unfavourable.

These are **rebuttable presumptions of fact**.

s.120 (IEA 114A): in a **rape prosecution**, once sexual intercourse is proved and the woman says in court that she **did not consent**, the court **shall presume** she did not consent.

5. Judicial notice (ss. 51–52)

s.51: facts of which the court takes **judicial notice need not be proved**.

s.52 lists facts the court **must** notice, including:

- all **laws in force** in India;
- **international treaties** and agreements;
- proceedings of the **Constituent Assembly** and legislatures;
- **seals** of courts;
- names and signatures of public officers notified in the Gazette;
- countries and **flags** recognised by India;
- **divisions of time**, geographical divisions, and notified holidays;
- the **territory of India**;
- hostilities with other nations;
- names of court officers and advocates;
- the **rule of the road**.

The court may consult **reference books** for matters of history, literature, science or art, and may refuse to take notice unless the person produces such a book.

The list is **not exhaustive**. Courts also take notice of facts of **common knowledge**.

6. Facts admitted need not be proved (s.53)

Facts that the parties **admit at the hearing**, agree in writing to admit, or are deemed to have admitted in their **pleadings** need **no proof**. These are **judicial admissions**, and they bind the party. The court may still **require proof** if it wishes.

In criminal cases, an admission by the accused does **not** relieve the prosecution of its burden.

MODULE 7: ORAL EVIDENCE

1. General principles

- **s.54**: **all facts may be proved by oral evidence**, except the **contents of documents and electronic records**.
- **s.55**: **oral evidence must be direct**:

    - a fact that could be **seen**: the witness says **“I saw it”**;
    - a fact that could be **heard**: the witness says **“I heard it”**;
    - a fact perceived by **another sense**: the witness says they perceived it that way;
    - an **opinion**: the person who **holds that opinion** must say so.

Experts’ opinions in published treatises can be proved by the treatise if the author is unavailable. The court may require **material objects** to be produced.

2. Exceptions to the hearsay rule

Hearsay is excluded by s.55, but it is admitted in these situations:

1. **Res gestae** (s.4).
2. **Admissions and confessions** (ss.15–24).
3. Statements of persons who **cannot be called** as witnesses, including **dying declarations** (s.26).
4. **Evidence given in an earlier proceeding** (s.27), if the witness is now unavailable, the proceeding was between the **same parties**, the other side had the **chance to cross-examine**, and the issues were **substantially the same**.
5. Entries in **books of account and public records** (ss.28–32).
6. **Statements of conspirators** (s.8).
7. **Expert opinions in treatises** (s.55).
8. Opinions on **public rights and customs** (s.42).

3. Examination of witnesses (ss. 140–168)

Order of examination:

1. **Examination-in-chief**: by the party who calls the witness.
2. **Cross-examination**: by the opposite party.
3. **Re-examination**: by the calling party, only to **explain matters raised in cross-examination**. If a new matter is introduced with the court’s permission, the opposite party may cross-examine on it.

(ss.142–143)

Key rules:

- The **judge decides admissibility** (s.141).
- Cross-examination **need not be limited** to what the witness said in chief (s.143).
- A person summoned **only to produce a document** is not a witness unless called as one (s.144).
- A witness may be **contradicted with their earlier written statements**, such as police statements. Their attention must first be drawn to the relevant parts (s.148). Under BNSS s.181, police statements can be used **only** this way (*Tahsildar Singh v. State of U.P.*, 1959).

The court protects witnesses:

- no question **without reasonable grounds** (ss.152–153);
- the court may forbid **indecent or scandalous** questions (s.154);
- it shall forbid questions meant to **insult or annoy** (s.155).

Answers on collateral matters are final (s.156). If a witness is asked about something only to test their truthfulness, their answer cannot be contradicted by other evidence. The exceptions are a **previous conviction** and questions about the witness's **impartiality**.

Corroboration:

- questions that tend to **corroborate** a relevant fact are admissible (s.159);
- a witness's **earlier statement**, made at the time of the event or to an authority, can be used to **corroborate** them (s.160).

Production of documents (s.165): a person summoned to produce a document must bring it, even if they object. The court decides the objection and may inspect the document, except one relating to affairs of State.

Judge's power to ask questions (s.168): the judge may ask **any question**, in any form, at any time, of any witness or party, and order **production of any document**, in order to discover the truth. The parties cannot object, and they need the court's permission to cross-examine on the answers.

Limits on s.168:

- the **judgment must be based on relevant facts** only;
- the judge **cannot compel answers** that are privileged;
- the judge cannot ask questions that would be improper under ss.151–152.

4. Leading questions (s.146)

A **leading question** is one that **suggests the answer** the questioner wants. For example: "You saw A stab B, didn't you?"

Stage	Allowed?
Examination-in-chief and re-examination	**Not allowed** if objected to, **except** on introductory or undisputed matters, matters already proved, or with the court's permission
Cross-examination	**Allowed**

The court can also allow leading questions in chief for a **hostile witness**.

5. Lawful questions in cross-examination (s.149)

In cross-examination, a witness may be asked questions to:

- **test their truthfulness**;
- find out **who they are and their position in life**;

- **shake their credit** by attacking their character, even if the answer may incriminate them.

Exception for sexual offences: questions about the victim's **general immoral character or past sexual experience** are **not allowed** to prove consent.

6. Hostile witness (s.157)

The Act does not use the word "hostile". Section 157 lets the court, at its **discretion**, allow the party calling a witness to **ask questions as in cross-examination**. This is used when a witness turns against the party who called them, or departs from their earlier statement.

The evidence of a hostile witness is not wiped out. The court can accept the parts that are **reliable** and consistent with other evidence.

- *Sat Paul v. Delhi Administration* (1976).
- ***Bhagwan Singh v. State of Haryana* (1976)**.
- *Koli Lakhmanbhai* (1999).

Why witnesses turn hostile: threats, money, long delays, and lack of protection. The **Witness Protection Scheme** (*Mahender Chawla v. UOI*, 2018; now BNSS s.398) and **perjury prosecutions** are the remedies. The Best Bakery case (*Zahira Habibullah Sheikh*) shows how serious the problem can be.

7. Impeaching the credit of a witness (s.158)

The opposite party, or the calling party with the court's permission, may **impeach a witness's credit** by:

- a. evidence from people who know the witness and believe them **unworthy of credit**;
- b. proof that the witness was **bribed** or received some other **corrupt inducement**;
- c. proof of **earlier inconsistent statements**.

The old clause allowing attacks on a rape victim's character was **deleted in 2003** and does not appear in the BSA.

Contradiction vs impeachment: contradiction (s.148) is one way of impeaching credit. **Impeachment** is wider: it attacks the witness's **general trustworthiness**.

8. Refreshing memory (ss. 162–164)

A witness may **refresh their memory** by looking at a writing:

- made by themselves **at the time of the event or soon after**, while it was **fresh in memory**; or

- made by someone else and **read by the witness at that time**, knowing it to be correct.

A **copy** may be used with the court's permission. An **expert** may refer to professional books.

The witness may also testify to facts in the document if they are sure it was **correctly recorded**, even without a specific memory of the facts (s.163).

The **opposite party may inspect** the writing and **cross-examine** on it (s.164). When police officers refresh their memory from the **case diary**, the accused may see those entries.

MODULE 8: ESTOPPEL

1. What is estoppel?

s.121 (IEA 115): when a person, **by declaration, act or omission**, has **intentionally caused or permitted another to believe a thing to be true** and **to act on that belief**, they (and their representatives) **cannot later deny the truth** of that thing in a case between them and that other person.

Illustration: A falsely leads B to believe that land belongs to A, and B buys it. Later A actually acquires the land and tries to set aside the sale, saying he had no title at the time. A **is estopped** from saying so.

Essentials:

1. a **representation** of an **existing fact** (not law, not a future promise);
2. made **intentionally**, or the person allowed the other to believe it;
3. the other person **believed it**;
4. they **acted on it** and changed their position to their **detriment**;
5. the case is **between the same parties** or their representatives.

Nature:

- Estoppel is a **rule of evidence**. It is a **shield, not a sword**, so it cannot create a cause of action (except promissory estoppel in India).
- There is **no estoppel against a statute** and **none on a point of law**.
- Origin: *Pickard v. Sears* (1837). See also *Sarat Chunder Dey v. Gopal Chunder Laha* (1892).

Kinds:

- estoppel by **record** (res judicata);
- estoppel by **deed**;
- estoppel by **conduct** (*in pais*), which is s.121;
- **promissory** estoppel;

- **tenant and licensee** estoppel.

Tenant estoppel (s.122): a **tenant** cannot deny the landlord's title **as it was at the start of the tenancy**, while the tenancy continues. A **licensee** cannot deny the licensor's title to possession at the time of the licence.

s.123: the **acceptor of a bill of exchange** cannot deny the drawer's authority to draw. A **bailee** cannot deny the bailor's authority. A **licensee** cannot deny the licensor's authority.

2. Estoppel distinguished from res judicata, waiver and presumption

Estoppel	Res judicata
Arises from the **act of the parties**	Arises from the **decision of a court**
Stops a party **saying one thing and later the opposite**	Stops a party **litigating the same matter twice**
A rule of **evidence** (BSA s.121)	A rule of **procedure** (CPC s.11) that bars the court's jurisdiction
Based on **equity**	Based on **public policy**: finality of litigation

Waiver is the **intentional giving up of a known right**. It is voluntary and needs **no detriment** to the other side. **Estoppel** needs the other party to have **relied on the representation to their detriment**. Waiver gives up a right; estoppel prevents denying a representation.

Estoppel vs presumption: a presumption is an **inference** the court draws. Estoppel **prevents a party from proving** the opposite of what they represented. It works like a conclusive presumption, but **only between the parties**.

3. Promissory estoppel

Meaning: if a person makes a **clear promise** intending it to be acted upon, and the other person **acts on it** and changes position, the promisor **cannot go back** on the promise if that would be **unjust**, **even without consideration**.

Origin: ***Central London Property Trust v. High Trees House*** **(1947)**, by Denning J. A landlord promised to accept reduced rent during the war, and was held bound for that period.

Development in India:

- ***Union of India v. Indo-Afghan Agencies*** **(1968)**: the Government was **bound** by its promise under an export scheme. The Government is not above equity.
- ***Motilal Padampat Sugar Mills v. State of U.P.*** **(1979)** (Bhagwati J.): the leading case. The State promised a **sales tax exemption** for 3 years, and the company set up a factory relying on it. The State was **held to its promise**. **Executive necessity is not a defence**. In India, promissory estoppel can found a **cause of action**.

- ***Jit Ram v. State of Haryana* (1980)**: tried to weaken Motilal. It was later disapproved.
- ***Union of India v. Godfrey Philips* (1985)**: confirmed Motilal. There is **no estoppel against the legislature** when it legislates, and none that would force the Government to act **against the law**.
- ***State of Punjab v. Nestle India* (2004)**: the Government can withdraw a promise only if **overriding public interest** requires it.

Limits:

1. No estoppel **against a statute** or the legislature.
2. None where the promise was **beyond the Government's powers** or illegal.
3. The Government may withdraw for **overriding public interest**, with reasonable notice.
4. The promise must be **clear**.
5. The promisee must have **changed position**.
6. None where there was **fraud**.

Difference from s.121: s.121 concerns a representation of an **existing fact**. Promissory estoppel concerns a **promise about the future**. It is an **equitable doctrine** developed by courts rather than strictly a rule within s.121.

4. Improper admission or rejection of evidence (s.169)

s.169 (IEA 167): wrongly admitting or rejecting evidence is **not by itself a ground for a new trial or for reversing a decision**, if the appellate court finds that:

- **without the wrongly admitted evidence**, there was still **enough evidence** to justify the decision; or
- **even if the rejected evidence had been admitted**, it **would not have changed** the decision.

This applies in **both civil and criminal** cases. For example, if a confession to the police was wrongly admitted, the appeal court **ignores it** and checks whether the remaining evidence is enough to convict.

On objections:

- An objection to the **mode of proof** must be raised **at the time** the evidence is tendered, or it is lost.
- An objection that evidence is **inherently inadmissible** can be raised **at any stage**.
- *R.V.E. Venkatachala Gounder v. Arulmigu Viswesaraswami & V.P. Temple* (2003).

The idea matches BNSS s.511 and CPC s.99: **no reversal unless justice has actually failed**.

LAW OF EVIDENCE — Bharatiya Sakshya Adhiniyam (BSA), 2023 (Exam Answers)

> The BSA came into force on **1 July 2024**, replacing the Indian Evidence Act, 1872 (IEA). It has **170 sections** (the IEA had 167). Old IEA section numbers are given in brackets as `(IEA xx)`. Format: each syllabus topic is written as an exam question, followed by the answer.

MODULE 1 — INTRODUCTION TO LAW OF EVIDENCE

Q1. Overview of the Indian Evidence Act: history, objectives and scope

Historical background

- **Ancient India**: Hindu law (Yajnavalkya, Manu, Narada) recognised three kinds of proof: **documents (lekhya), witnesses (sakshi) and possession (bhukti)**, plus **divine tests (ordeals)**.
- **Muslim period**: oral evidence, documents and the oath. The Quran and Hadith required witnesses (e.g. two male witnesses).
- **British period**: the presidency towns followed English rules; the mofussil had no uniform law. Several regulations were passed (1793–1855).
- **Indian Evidence Act, 1872**: drafted by **Sir James Fitzjames Stephen**. It came into force on 1 September 1872.
- **BSA 2023** replaced it. The structure is retained. The main changes are the inclusion of **electronic and digital records** as documents and primary evidence, the merging of some sections, and the removal of colonial terms.

Objectives

1. To prevent the court from being misled by irrelevant matter.
2. To ensure uniformity and certainty.
3. To lay down what facts may be proved (**relevancy**), how they are proved (**proof**), and who must prove them (**burden**).
4. To avoid delay and ensure a fair trial.

Scope (s.1)

- Applies to **all judicial proceedings in or before any court**, including **court-martials**.
- **Does not apply** to **affidavits** presented to a court or officer, or to **arbitration** proceedings. (The syllabus statement that it applies to arbitration is not accurate in law: Arbitration Act s.19 says the tribunal is not bound by it.)
- Applies to both **civil and criminal** proceedings.
- It is **lex fori** (the law of the forum) and **adjective law** (procedural).

Central conceptions

1. **Facts** and **facts in issue**.
2. **Relevancy** (BSA ss. 3–50).
3. **Evidence** (oral, documentary, electronic).
4. **Proof**, i.e. proved, disproved and not proved, and presumptions.
5. **Burden of proof**.
6. **Witnesses** and their examination.

Q2. BSA, 2023: structure and key provisions

Structure: 170 sections in **12 chapters**, in four parts:

- **Part I: Relevancy of facts** (Chapters I–II, ss. 1–50): preliminary; relevancy (res gestae, admissions, confessions, statements of persons who cannot be called, expert opinion, character).
- **Part II: On proof** (Chapters III–V, ss. 51–103): facts that need not be proved; oral evidence; documentary evidence (including electronic); exclusion of oral by documentary evidence.
- **Part III: Production and effect of evidence** (Chapters VI–XI, ss. 104–169): burden of proof; estoppel; witnesses; examination of witnesses; improper admission of evidence.
- **Part IV**: repeal and savings (s.170).

Key changes from the IEA

1. **“Document” includes electronic and digital records** (s.2(1)(d)): emails, server logs, smartphones, laptops, SMS, websites, locational evidence, voicemails.
2. **Evidence includes information given electronically** (s.2(1)(e)), so witnesses can be examined electronically.
3. **Electronic records as primary evidence** (s.57, explanations): stored or produced simultaneously or sequentially in multiple files.
4. **Secondary evidence expanded** (s.58): oral and written admissions, and evidence of a person skilled in examining documents.
5. **s.63 certificate**: a new two-part format in the Schedule (**Part A** filled by the party, **Part B** by an expert).
6. **Merging**: IEA ss. 24, 28, 29 became s.22; ss. 25, 26, 27 became s.23.
7. **Joint trial** includes **trial in absentia** of an absconding accused (s.24).
8. Colonial terms (“Her Majesty”, “Lunatic”, “Court of Wards”) removed.
9. An **“Examiner of electronic evidence”** under IT Act s.79A is treated as an expert (s.39).

Q3. Definitions: Fact, Relevant fact, Facts in issue (s.2)

Fact (s.2(1)(f), IEA 3):

i. anything, state of things or relation of things **capable of being perceived by the senses** (a **physical fact**);

ii. any **mental condition** of which any person is conscious (a **psychological fact**).

Illustrations: that there are certain objects arranged in a certain order in a certain place is a fact; that a person heard or saw something is a fact; that a person has a certain opinion, intention, good faith or fraudulent intent, or holds a reputation, is a fact.

Relevant fact (s.2(1)(k)): one fact is relevant to another when it is connected with the other in any of the ways referred to in the provisions of the Adhiniyam relating to the **relevancy of facts** (ss. 3–50). "Relevant" therefore means **legally relevant**, not merely logically relevant.

Facts in issue (s.2(1)(g)): any fact from which, **either by itself or in connection with other facts**, the existence, non-existence, nature or extent of any **right, liability or disability** asserted or denied in any suit or proceeding **necessarily follows**.

- In **criminal** cases, the facts in issue are the **ingredients of the offence** charged.
- In **civil** cases, they are determined by the **pleadings and issues** framed (CPC Order XIV).
- *Illustration*: A is accused of the murder of B. The facts in issue are: that A caused B's death; that A intended to cause B's death; that A received grave and sudden provocation; that A was deprived of self-control when he caused the death.

Facts in issue vs relevant facts: facts in issue are the **principal facts** (factum probandum). Relevant facts are **evidentiary facts** (factum probans) that help prove or disprove them.

Q4. Evidence: oral, documentary and real; primary and secondary; circumstantial and direct; hearsay

Evidence (s.2(1)(e)) means and includes:

i. all statements, **including statements given electronically**, which the court permits or requires to be made before it by witnesses in relation to matters of fact under inquiry. This is **oral evidence**;
ii. all documents, **including electronic or digital records**, produced for the inspection of the court. This is **documentary evidence**.

Kinds of evidence

1. **Oral evidence**: statements of witnesses (s.54). It must be **direct** (s.55).
2. **Documentary evidence**: documents, including electronic records (s.56 onwards).
3. **Real / material evidence**: material objects such as a weapon, clothes or a fingerprint. Under s.55 proviso, the court may require its production for inspection. It is not covered by the definition but is admitted as "material things".
4. **Primary evidence** (s.57): the **document itself** produced for inspection by the court.
5. **Secondary evidence** (s.58): certified copies, copies made by mechanical process, counterparts, oral accounts, and so on (see Q24).

6. **Direct evidence**: evidence of a witness who **perceived the fact** with their own senses (s.55: “saw”, “heard”, “perceived”).
7. **Circumstantial evidence**: evidence of **facts from which the fact in issue may be inferred**. *Sharad Birdhichand Sarda v. State of Maharashtra* (1984) set out the **five golden principles (panchsheel)**:
    - a. the circumstances must be **fully established**;
    - b. they must be consistent **only with the hypothesis of guilt**;
    - c. they must be **conclusive** in nature;
    - d. they must **exclude every hypothesis except guilt**;
    - e. they must form a **complete chain** leaving no reasonable ground for innocence. (Also *Hanumant Govind Nargundkar v. State of M.P.*, 1952.)
8. **Hearsay evidence**: what a witness **heard from another person** who perceived the fact. It is generally **inadmissible** because it is not on oath, not cross-examined, and the declarant’s demeanour cannot be seen. It is barred by s.55 (oral evidence must be direct). Exceptions are listed in Q49.

Q5. Proved, disproved and not proved (s.2(1)(j), (c), (i))

- **Proved**: a fact is said to be proved when, after considering the matters before it, the court either **believes it to exist**, or considers its existence **so probable that a prudent man ought**, under the circumstances of the particular case, **to act upon the supposition that it exists**.
- **Disproved**: the court believes it does not exist, or considers its non-existence so probable that a prudent man ought to act on the supposition that it does not exist.
- **Not proved**: a fact is neither proved nor disproved.

The **prudent man test** is the standard. **Civil cases** use the **preponderance of probabilities**. **Criminal cases** require proof **beyond reasonable doubt**, though the definition is the same (*N.G. Dastane v. S. Dastane*, 1975).

Q6. Witness (s.124)

A **witness** is a person who gives evidence. **All persons are competent** to testify unless the court considers that they cannot understand the questions or give rational answers because of tender years, extreme old age, disease (of body or mind) or similar cause. A person of unsound mind is competent unless prevented from understanding. Details are in Module 5.

Q7. May presume, shall presume and conclusive proof (s.2(1)(h), (l), (b)). *(Important)*

Presumption: an inference that the court draws about a fact from other proved facts.

1. **May presume** (s.2(1)(h)): the court **may either regard such a fact as proved, unless and until it is disproved, or may call for proof of it**. This is **discretionary**, i.e. a presumption of fact. Examples: s.119 (IEA 114: possession of stolen goods soon after theft, accomplice unworthy of credit), s.78 onwards.

2. **Shall presume** (s.2(1)(l)): the court **shall regard such fact as proved, unless and until it is disproved**. This is **mandatory but rebuttable**, i.e. a rebuttable presumption of law. Examples: s.118 (IEA 113B, dowry death); s.120 (IEA 114A, absence of consent in rape); s.79 (genuineness of certified copies).
3. **Conclusive proof** (s.2(1)(b)): when one fact is declared conclusive proof of another, the court shall, on proof of the one, regard the other as proved and **shall not allow evidence to be given to disprove it**. This is an **irrebuttable presumption of law**. Examples: s.116 (IEA 112, birth during valid marriage as conclusive proof of legitimacy); s.35 (IEA 41, judgments in rem).

May presume	Shall presume	Conclusive proof
Discretionary	Mandatory	Mandatory
Rebuttable	Rebuttable	Irrebuttable
Presumption of fact	Rebuttable presumption of law	Irrebuttable presumption of law
Court may call for proof	Court must presume, but the other party can disprove	No evidence to disprove is allowed

Appreciation of evidence: the court evaluates the credibility, consistency and probability of evidence. **Evidence is weighed, not counted** (s.139). Minor contradictions do not destroy credibility (*State of U.P. v. M.K. Anthony*, 1985). *Bharwada Bhoginbhai Hirjibhai v. State of Gujarat* (1983): minor discrepancies are not fatal.

MODULE 2 — RELEVANCE AND ADMISSIBILITY

Q8. Relevancy vs admissibility (s.3, IEA 5)

s.3: evidence may be given in any suit or proceeding of the **existence or non-existence of every fact in issue** and of such other facts as are declared to be **relevant**, **and of no others**.

Relevancy	Admissibility
Based on **logic and probability**	Based on **law and policy**
Defined in ss. 3–50	Covered in ss. 51 onwards (proof)
Answers: what facts may be proved?	Answers: how and whether they may be proved
Relevant facts may not be admissible (e.g. a confession to police is relevant but inadmissible; privileged communications)	Admissible facts are generally relevant
Relevancy is the **cause**	Admissibility is the **effect**

Admissible vs inadmissible evidence: admissible evidence is relevant and not excluded by any rule (hearsay, privilege, confession to police). Inadmissible evidence is excluded either because it is irrelevant or because of public policy.

Ram Bihari Yadav v. State of Bihar (1998): relevancy and admissibility are not the same.

Q9. Doctrine of Res Gestae (ss. 4, 5, 6). *(Very important)*

Meaning: "things done" or "part of the same transaction". Facts so connected with a fact in issue that they form **part of the same transaction** are relevant, whether they occurred at the same time and place or at different times and places.

s.4 (IEA 6): facts which, though not in issue, are **so connected with a fact in issue as to form part of the same transaction**.

- *Illustration (a)*: A is accused of murdering B by beating him. Whatever was **said or done by A, B or the bystanders at the beating, or so shortly before or after it as to form part of the transaction**, is a relevant fact.

Essentials

1. The statement or act must be **contemporaneous** with the fact in issue, or so immediately after it that there is **no time for fabrication**.
2. It must be **spontaneous**.
3. It must relate to the fact in issue.

s.4 is an exception to the hearsay rule: statements of bystanders can be proved through another witness.

Cases

- *R v. Bedingfield* (1879): a woman came out with her throat cut and said "See what Harry has done to me". This was held **not admissible**, as it was made after the act was complete. (The decision is criticised.)
- *Ratten v. R* (1972, Privy Council): a telephone call by the deceased saying "Get me the police please" was admissible. The test is **spontaneity, not exact contemporaneity**.
- *Gentela Vijayavardhan Rao v. State of A.P.* (1996): a statement recorded by a Magistrate **hours later** was **not res gestae**. "The statement must be made **contemporaneously** with the acts or **immediately thereafter**."
- *Sukhar v. State of U.P.* (1999): a statement by the injured shortly after the shooting was admissible as res gestae.
- *Uttam Singh v. State of Madhya Pradesh*.

s.5 (IEA 7): facts that are the **occasion, cause or effect** of facts in issue, or that constitute the **state of things** under which they happened or which gave **opportunity** for their occurrence. *Illustration*: footprints, injury marks, etc.

s.6 (IEA 8): **motive, preparation and conduct**.

- Any fact that shows or constitutes a **motive or preparation** for any fact in issue.
- The **conduct** of any party or agent, **previous or subsequent**, if it influences or is influenced by a fact in issue.

- *Explanation 2*: a statement made in the presence and hearing of a person whose conduct is relevant, which affects that conduct, is relevant (e.g. silence or running away when accused).
- Examples: **absconding** after an offence (*Matru v. State of U.P.*, 1971, which held absconding is weak evidence on its own); purchase of poison; a complaint made by the victim of a sexual offence.

Q10. Test Identification Parade (s.7, IEA 9)

s.7: facts necessary to explain or introduce a relevant fact, or that **establish the identity of anything or person** whose identity is relevant, fix the **time or place**, or show the **relation of parties**, are relevant.

Test Identification Parade (TIP): held during **investigation** (usually by a Magistrate) for witnesses who did not know the accused earlier. Its purpose is to **test the memory of witnesses** and assure the investigating agency that it is on the right track.

Evidentiary value

- **Substantive evidence** is the **identification in court**. The TIP only **corroborates** it.
- A TIP is **not mandatory**. Failure to hold one does not make the in-court identification inadmissible, but it reduces its weight.
- The TIP should be held **promptly**, and the accused must not have been **shown to witnesses** beforehand.
- The accused must be mixed with persons of **similar appearance**.
- A **Magistrate** should conduct it. If conducted by police, the statements are hit by s.181 BNSS (CrPC 162).
- The accused **cannot refuse** to participate (no violation of Art. 20(3)). Refusal may lead to an adverse inference.
- BNSS s.54: identification of an arrested person by a Magistrate.

Cases

- *Kanta Prashad v. Delhi Administration* (1958).
- *Ramkishan Mithanlal Sharma v. State of Bombay* (1955): TIP statements before police are hit by s.162.
- *Malkhansingh v. State of M.P.* (2003): a TIP is not substantive evidence; it is used to corroborate.
- *Matru v. State of U.P.* (1971).

Q11. Things said or done by a conspirator in reference to the common design (s.8, IEA 10)

s.8: where there is **reasonable ground to believe** that two or more persons have **conspired together** to commit an offence or an actionable wrong, anything **said, done or written by any one of them in reference to their common intention**, after the time when that intention was **first entertained**, is relevant **against each of the**

persons believed to be conspiring, both to prove the existence of the conspiracy and to show that any such person was a party to it.

Essentials

1. There must be **prima facie evidence (reasonable ground)** that a conspiracy exists.
2. The act or statement must be **in reference to the common intention**.
3. It must be made **after the intention was first formed**, and **before the conspiracy ends**. Statements made after arrest or after the conspiracy ends are not covered.
4. It is relevant against **all conspirators**, even those who joined later or were absent.

This is based on agency: each conspirator is the agent of the others.

Cases

- *Mirza Akbar v. King Emperor* (1940, Privy Council): statements made after the conspiracy ended (after arrest) are not admissible under s.10.
- *Badri Rai v. State of Bihar* (1958): a statement by one conspirator offering a bribe was admissible against the other.
- *Sardar Sardul Singh Caveeshar v. State of Maharashtra* (1965).
- *State (NCT of Delhi) v. Navjot Sandhu* (Parliament attack case, 2005).
- *State of T.N. v. Nalini* (Rajiv Gandhi assassination case, 1999).

Note: the syllabus calls this “Evidence of Common Intention”. Distinguish it from BNS s.3(5) (IPC 34), which deals with substantive liability.

Q12. When facts not otherwise relevant become relevant (s.9, IEA 11)

s.9: facts not otherwise relevant are relevant:

1. if they are **inconsistent with any fact in issue or relevant fact**;
2. if by themselves or in connection with other facts they make the existence or non-existence of any fact in issue or relevant fact **highly probable or improbable**.

Main application: plea of alibi. “Alibi” means “elsewhere”. If A was in Kolkata on the day a murder took place in Lahore, that fact is relevant because it is **inconsistent** with A having committed the murder (*Illustration (a)*). The **burden** of proving an alibi is on the accused (BSA s.106), and it must be proved with **certainty** (*Binay Kumar Singh v. State of Bihar*, 1997; *Jayantibhai Bhenkarbhai v. State of Gujarat*, 2002).

Problems of relevancy: s.9 is very **wide**. If read literally, it could admit hearsay and remote facts. Courts restrict it: the inconsistency or probability must be **high**; it **does not override** other exclusionary rules (hearsay, privileges, confessions); and remote, speculative facts are excluded.

Q13. Facts to determine damages; proof of custom (ss. 10, 11)

- **s.10 (IEA 12)**: in suits for damages, any fact that will enable the court to **determine the amount of damages** is relevant.
- **s.11 (IEA 13)**: where the existence of a **right or custom** is in question, the following are relevant:
    a. any **transaction** by which the right or custom was created, claimed, modified, recognised, asserted or denied, or which was inconsistent with its existence;
    b. **particular instances** in which it was claimed, recognised or exercised, or in which its exercise was disputed, asserted or departed from.
- A **custom** must be **ancient, certain, reasonable, continuous** and not opposed to public policy.
- Also relevant: s.42 (IEA 48), opinions as to the existence of a general custom or right; and judgments under s.34 onwards.

Q14. Facts showing state of mind or body (ss. 12, 13, 14)

- **s.12 (IEA 14)**: facts showing the existence of any **state of mind**, such as intention, knowledge, good faith, negligence, rashness, ill-will or goodwill, or of any **state of body or bodily feeling**, are relevant when its existence is in issue or relevant. It must relate to the **particular matter in question**. *Explanation 2*: a **previous conviction** becomes relevant where the previous commission of an offence is relevant. *Illustration*: A is accused of receiving stolen goods knowing them to be stolen. The fact that he has many other stolen articles is relevant to show knowledge.
- **s.13 (IEA 15)**: when the question is whether an act was **accidental or intentional**, the fact that it formed part of a **series of similar occurrences** is relevant. *Illustration*: A is accused of burning his house to claim insurance. The fact that he lived in several houses, each insured, each of which caught fire, is relevant. (*Makin v. Attorney-General for New South Wales*, 1894: the bodies of several babies were found in the backyard.)
- **s.14 (IEA 16)**: the existence of a **course of business** is relevant to show that a particular act was done (e.g. posting of a letter, presumption of delivery).

Q15. Admissions (ss. 15–21, 25). *(Very important)*

Definition (s.15, IEA 17): a **statement, oral or documentary or contained in electronic form**, which **suggests any inference** as to any fact in issue or relevant fact, made by the persons and in the circumstances mentioned in the Adhiniyam.

Who can make admissions (ss.16–18, IEA 18–20)

1. A **party** to the proceeding, or their **agent** authorised by them (s.16(1)).
2. A party suing or sued in a **representative character**, while holding that character.
3. Persons with a **proprietary or pecuniary interest** in the subject matter.
4. **Predecessors-in-interest** from whom the parties derive their interest, during the continuance of that interest.
5. Persons whose **position or liability** must be proved against a party (s.17). *Illustration*: A undertakes to pay B for rent due from C. C's admission that he owed

rent is relevant against A.
6. Persons **expressly referred to** by a party for information (s.18). *Illustration*: “ask the referee”.

Proof of admissions (s.19, IEA 21): admissions are relevant and may be proved **against the person who makes them** or their representative. **They cannot be proved by or on behalf of the person who makes them** (self-serving statements are excluded), **except**:

a. when it is of a nature that, if the maker were dead, it would be relevant under s.26 (dying declarations and similar);
b. when it consists of a statement of the existence of a state of mind or body, made at or about the time, accompanied by conduct making its falsehood improbable;
c. when it is relevant otherwise than as an admission.

s.20 (IEA 22, 22A): oral admissions about the **contents of a document** are not relevant unless the party is entitled to give secondary evidence, or the genuineness of the document is in question. Oral admissions about the contents of **electronic records** are not relevant unless the genuineness of the record is in question.

s.21 (IEA 23): admissions in civil cases made **“without prejudice”**, i.e. on an express condition that evidence of them should not be given, or in circumstances from which the court can infer the parties agreed so, are not relevant. This encourages settlement.

s.25 (IEA 31): **admissions are not conclusive proof** of the matters admitted, but they may operate as **estoppels**.

Nature and evidentiary value

- An admission is **substantive evidence** even if the maker is **not confronted** with it when in the witness box (*Bharat Singh v. Bhagirathi*, 1966).
- **Judicial admissions** (in pleadings, or under CPC Order XII) are **conclusive** and can be the basis of a decree (s.53, facts admitted need not be proved). **Extra-judicial (evidentiary) admissions** are **rebuttable**.
- An admission must be **clear, unambiguous and definite**. It must be taken as a whole.
- *Nagindas Ramdas v. Dalpatram Ichharam* (1974): judicial admissions stand on a higher footing.
- *Narayan Bhagwantrao Gosavi Balajiwale v. Gopal Vinayak Gosavi* (1960): an admission is the best evidence against the party making it, unless shown to be wrong.

Q16. Confessions (ss. 22–24). *(Very important)*

Meaning: “confession” is **not defined** in the Act. It is a species of admission made by an accused in a criminal case.

- **Stephen**: “an admission made at any time by a person charged with a crime, **stating or suggesting the inference that he committed that crime**.”

- **Pakala Narayana Swami v. Emperor** (1939, Privy Council, Lord Atkin): a confession must either **admit in terms the offence, or at any rate substantially all the facts which constitute the offence**. An admission of a gravely incriminating fact, even a conclusively incriminating one, is **not of itself a confession**.
- *Palvinder Kaur v. State of Punjab* (1952): adopted Pakala. An **exculpatory statement** is not a confession. A confession must be **taken as a whole**: it cannot be split into inculpatory and exculpatory parts.
- *Aghnoo Nagesia v. State of Bihar* (1966): an FIR given by the accused containing a confession is wholly inadmissible, except the formal part and any s.27 discovery.

Kinds of confession

1. **Judicial confession**: made **before a Magistrate** under BNSS s.183 (CrPC 164) or before the court during the proceedings. It can found a conviction if voluntary and true.
2. **Extra-judicial confession**: made to **any person other than a Magistrate or police**, e.g. friends or relatives. It is a **weak piece of evidence**: its value depends on the reliability of the person to whom it is made (*Sahadevan v. State of T.N.*, 2012, which laid down principles; *Kavita v. State of T.N.*, 1998).
3. **Retracted confession**: see Q18.

Admissibility

s.22 (IEA 24, 28, 29):

- 1. A confession made by an accused is **irrelevant** in a criminal proceeding if it appears to the court to have been caused by any **inducement, threat, coercion or promise**:
    - having reference to the charge;
    - proceeding from a **person in authority**;
    - sufficient to give the accused grounds for supposing that by making it they would **gain an advantage or avoid an evil of a temporal nature**. (BSA adds "**coercion**".)
- **Proviso (IEA 28)**: if the confession is made **after the impression caused by the inducement has been fully removed** (in the opinion of the court), it is relevant.
- **Proviso (IEA 29)**: a confession otherwise relevant does not become irrelevant merely because it was made under a **promise of secrecy**, through **deception**, when **drunk**, in answer to questions the accused need not have answered, or **without a warning** that they were not bound to make it.

s.23 (IEA 25, 26, 27):

- **s.23(1)**: **no confession made to a police officer shall be proved** against an accused person. *Reason*: to prevent torture and coerced confessions. "Police officer" is understood in a broad sense (*State of Punjab v. Barkat Ram*, 1962, held customs officers are not police officers; *Raja Ram Jaiswal v. State of Bihar*, 1964, held excise

officers with police powers are; *Tofan Singh v. State of T.N.*, 2020, held **NDPS officers are police officers**, so s.67 statements are inadmissible).

- **s.23(2)**: **no confession made while in police custody** shall be proved against them, **unless made in the immediate presence of a Magistrate**. *Reason*: custody involves the influence of police even if the confession is made to a third person.
- **Proviso to s.23(2) (IEA 27): discovery of facts**. When any **fact is discovered** in consequence of information received from an accused **in police custody**, **so much of the information, whether amounting to a confession or not, as relates distinctly to the fact discovered**, may be proved.
    - *Pulukuri Kottaya v. Emperor* (1947, Privy Council): the "fact discovered" includes the **place from which the object is produced and the knowledge of the accused** as to this. Example: "I will produce a knife concealed in the roof of my house" is admissible; "with which I stabbed A" is inadmissible.
    - *State of U.P. v. Deoman Upadhyaya* (1960): s.27 does not violate Art. 14.
    - *State (NCT Delhi) v. Navjot Sandhu* (2005).
    - *Selvi* (2010): information from forced narco-analysis cannot be used.
    - The essentials are: the accused is in **police custody**; there is information; a **fact is discovered as a consequence**; and **only the part that distinctly relates** to it is admissible.

s.24 (IEA 30): confession of a co-accused

- When more persons than one are **being tried jointly for the same offence**, and a confession made by one of them, **affecting himself and some other** of them, is **proved**, the court **may take it into consideration** against the other person as well as the maker.
- *BSA Explanation*: a trial of more persons held in the **absence of an absconding accused** (trial in absentia) is treated as a joint trial.
- **Evidentiary value**: it is **not substantive evidence** against the co-accused. It can only be used to **lend assurance** to other evidence.
    - *Bhuboni Sahu v. The King* (1949, Privy Council): it is the weakest kind of evidence; it is not given on oath and is not tested by cross-examination.
    - *Kashmira Singh v. State of M.P.* (1952): the court must first marshal the other evidence and then use the confession to lend assurance.
    - *Haricharan Kurmi v. State of Bihar* (1964, Constitution Bench): it is not evidence under s.3 (definition), so it can only support other evidence.

Value of a confession: a **voluntary and true** confession is substantive evidence and can be the sole basis of conviction (*Shankaria v. State of Rajasthan*, 1978, which set out a double test: is it voluntary, and is it true?).

Q17. Problems with judicial action based on a retracted confession

A **retracted confession** is one made voluntarily (usually before a Magistrate) that is later **withdrawn** by the accused, who may claim it was coerced.

- **Law**: it is **admissible**. A conviction can be based on it if the court is satisfied it was **voluntary and true**. As a **rule of prudence**, however, courts require **corroboration in material particulars**. This is not required by law, only by prudence.
- **Cases**
  - *Pyare Lal v. State of Rajasthan* (1963): a retracted confession can be the basis of conviction if voluntary and true; corroboration is a rule of prudence.
  - *Subramania Goundan v. State of Madras* (1958): a retracted confession needs general corroboration.
  - *Bharat v. State of U.P.* (1971): retracted confessions are a weak type of evidence.
  - *Shankaria v. State of Rajasthan* (1978).
- **Problems**: it is hard to know whether the retraction is genuine; there is a possibility of torture; there is delay in retraction; and the court must examine the circumstances in which it was recorded (a BNSS s.183 compliance check).

Q18. Difference between admission and confession

Basis	Admission	Confession
Definition	Defined in s.15	Not defined
Proceedings	Civil and criminal	Criminal only
Maker	Party, agent, predecessor, etc.	The accused only
Nature	Any statement suggesting an inference about a fact in issue	A direct acknowledgment of guilt
Self-serving use	May be proved by the maker in exceptional cases (s.19)	Never in favour of the maker
Effect	Not conclusive; may operate as estoppel (s.25)	If voluntary and true, can be the basis of conviction
Against others	Admission by an agent can bind the principal	A co-accused's confession may be considered against the other (s.24)
Rule	Every confession is an admission	Not every admission is a confession

MODULE 3 — STATEMENTS BY PERSONS

Q19. Statements by persons who cannot be called as witnesses; dying declaration (s.26, IEA 32). *(Very important)*

s.26 covers statements, written or verbal, of relevant facts made by a person:

- who is **dead**;
- who **cannot be found**;

- who has become **incapable of giving evidence**;
- whose attendance **cannot be procured without unreasonable delay or expense**.

Such statements are themselves relevant in the following cases (this is an **exception to hearsay**):

- **(a) Dying declaration**: a statement made by a person **as to the cause of their death**, or as to **any of the circumstances of the transaction which resulted in their death**, in cases where the **cause of that person's death comes into question**.
    - It is relevant **whether or not the person was under expectation of death** when making it. (This differs from English law, which requires a settled hopeless expectation of death.)
    - It applies to **any proceeding** (civil or criminal).
- b. Statement made in the **course of business**.
- c. Statement **against the interest** of the maker (pecuniary or proprietary interest, or exposing them to prosecution or damages).
- d. Opinion as to a **public right or custom**, made before a controversy arose.
- e. Statement relating to the existence of a **relationship** by blood, marriage or adoption, made before a controversy arose.
- f. Statements in a **will or deed relating to family affairs**.
- g. Statements in a document relating to a **transaction** mentioned in s.11(a).
- h. Statements made by several persons expressing **feelings** relevant to the matter in question.

Dying declaration: principles

- **Basis**: *nemo moriturus praesumitur mentire* (a man will not meet his maker with a lie in his mouth). Necessity is the other basis: the victim is the only eyewitness.
- It is **not made on oath** and **not cross-examined**, so the court must be satisfied that it is **true and voluntary** and that the declarant was in a **fit state of mind**.

Cases

- *Khushal Rao v. State of Bombay* (1958): a dying declaration can be the **sole basis of conviction** without corroboration if it is true and voluntary. Corroboration is not a rule of law. A declaration recorded by a Magistrate in question-answer form, in the words of the declarant, is better.
- *Pakala Narayana Swami v. Emperor* (1939): "circumstances of the transaction" means circumstances having a **proximate relation** to the actual occurrence. A statement that the deceased was going to Berhampur to collect money from the accused was admissible.
- *Laxman v. State of Maharashtra* (2002, Constitution Bench): a doctor's certificate of fitness is **not mandatory**. The test is whether the declarant was mentally fit, which can be established otherwise.
- *Paniben v. State of Gujarat* (1992) and *Atbir v. Govt. of NCT Delhi* (2010): principles. It must not be the result of tutoring, prompting or imagination; a declaration that

suffers from infirmity cannot be the sole basis; multiple declarations must be consistent.
- *Sharad Birdhichand Sarda v. State of Maharashtra* (1984): statements by a wife about cruelty weeks before her death were admissible as **circumstances of the transaction**.
- A declaration in the form of **gestures or signs** is valid (*Queen-Empress v. Abdullah*, 1885).
- **If the declarant survives**, the statement is not a dying declaration. It can be used under s.160 (corroboration) or s.148 (contradiction).

Q20. Statements made under special circumstances (ss. 28–32)

- **s.28 (IEA 34)**: **entries in books of account, including electronic form**, regularly kept in the course of business, are relevant. They **alone are not sufficient** to charge any person with liability (*CBI v. V.C. Shukla*, 1998, the Jain Hawala case: loose sheets are not "books of account"; entries need independent corroboration).
- **s.29 (IEA 35)**: an **entry in any public or official book, register or record, including an electronic record**, made by a public servant in the discharge of official duty, is relevant. Examples: a birth register, a school register (for age).
- **s.30 (IEA 36)**: statements in **published maps or charts** generally offered for public sale, or maps made under the authority of Government.
- **s.31 (IEA 37)**: statements about facts of a **public nature** contained in Acts or notifications.
- **s.32 (IEA 38)**: statements of **law** contained in law books, including electronic or digital form, of any country.

Q21. How much of a statement is to be proved (s.33, IEA 39)

When a statement forms part of a **longer statement, a conversation, an isolated document, a document in a book or series of letters, or an electronic record**, evidence shall be given of **so much and no more** of it as the court considers **necessary** to the full understanding of its nature and effect. This is the **rule of completeness**.

Q22. Judgments of courts: when relevant (ss. 34–38, IEA 40–44)

- **s.34 (IEA 40)**: a **previous judgment that bars a second suit or trial** (res judicata or double jeopardy) is relevant.
- **s.35 (IEA 41): judgments in rem**. Final judgments in **probate, matrimonial, admiralty or insolvency jurisdiction** that confer or take away a **legal character** are relevant and are **conclusive proof** against the **whole world**.
- **s.36 (IEA 42)**: judgments relating to matters of a **public nature** are relevant but not conclusive.
- **s.37 (IEA 43)**: other judgments are **irrelevant**, unless their existence is a fact in issue or relevant under another provision. *Illustration*: a civil judgment is not relevant in a criminal case on the same facts (*K.G. Premshanker v. Inspector of Police*, 2002).

- **s.38 (IEA 44)**: **fraud or collusion** in obtaining a judgment, or **incompetency** of the court, may be proved.
- **Judgment in rem vs in personam**: a judgment in rem binds everyone. A judgment in personam binds only the parties.

Q23. Opinion of experts (ss. 39–45). *(Important)*

s.39 (IEA 45, 45A): when the court has to form an opinion on a point of **foreign law, science, art, any other field, identity of handwriting or finger impressions**, opinions of persons **specially skilled** in it (experts) are relevant.

- **s.39(2)**: the opinion of the **Examiner of Electronic Evidence** (IT Act s.79A) is relevant on matters relating to electronic or digital records.
- Examples: medical opinion, ballistics, handwriting, fingerprint, DNA, forensic and electronic evidence.

Who is an expert: a person with **special knowledge, skill or experience** in the subject, gained by study or practice. Formal qualification is not essential.

Facts bearing on expert opinion (s.40, IEA 46): facts that support or are inconsistent with expert opinion are relevant.

Opinion on handwriting and signature (s.41, IEA 47, 47A): the opinion of a person **acquainted with the handwriting** of the writer is relevant. The opinion of the **Certifying Authority** that issued an **electronic signature certificate** is also relevant.

Opinion as to general custom (s.42), **usages and tenets (s.43)**, **relationship (s.44)** (the conduct of persons with special means of knowledge, e.g. treating as husband and wife), and **grounds of opinion (s.45)**: the grounds on which an opinion is based are also relevant.

Evidentiary value and problems with expert testimony

- Expert opinion is **only advisory**. The court is **not bound** by it; the court decides.
- It is **not substantive evidence**. It is corroborative.
- Experts may be **biased** (paid by a party). The science may be imperfect (handwriting is not an exact science). There may be **conflict between experts**. The expert is a witness of **opinion, not fact**.
- **Medical vs ocular evidence**: ocular evidence prevails unless the medical evidence **wholly rules it out** (*Solanki Chimanbhai Ukabhai v. State of Gujarat*, 1983).

Cases

- *State of H.P. v. Jai Lal* (1999): an expert must give the **reasons** for the opinion; a bare opinion has little value.
- *Murari Lal v. State of M.P.* (1980): **handwriting expert** evidence can be acted upon without corroboration if it is reliable, though corroboration is prudent. The court can compare writing itself (s.72).
- *Magan Bihari Lal v. State of Punjab* (1977): handwriting evidence is weak.

- *Ramesh Chandra Agrawal v. Regency Hospital Ltd.* (2009): conditions for admitting expert evidence.
- *Selvi v. State of Karnataka* (2010): scientific tests and consent.

Q24. Evidence of character (ss. 46–50, IEA 52–55)

- **s.46 (IEA 52)**: in **civil cases**, character to prove conduct imputed is **irrelevant**, except so far as character appears from facts otherwise relevant.
- **s.47 (IEA 53)**: in **criminal cases**, **previous good character is relevant**. The accused can prove it.
- **s.48 (IEA 53A)**: in prosecutions for **sexual offences** (BNS ss.64–71, 74–79), evidence of the **character of the victim or her previous sexual experience** is **not relevant** on the question of **consent** or the quality of consent.
- **s.49 (IEA 54)**: in criminal cases, **previous bad character is irrelevant**, **unless the accused has given evidence of good character**, in which case it becomes relevant (in rebuttal). *Explanation*: this does not apply where bad character is itself a fact in issue. A **previous conviction** is relevant as evidence of bad character.
- **s.50 (IEA 55)**: in **civil cases**, character **affecting the amount of damages** is relevant (e.g. in defamation or breach of promise to marry).
- "**Character**" includes both **reputation and disposition**. Evidence may be given only of **general reputation and general disposition**, not of particular acts.

MODULE 4 — DOCUMENTARY EVIDENCE

Q25. Document: types, admissibility, proof of execution, secondary evidence

Document (s.2(1)(d)): any matter **expressed or described or otherwise recorded** upon any substance by means of letters, figures or marks, or any other means, or by more than one of those means, **intended to be used, or which may be used, for recording that matter**. It **includes electronic and digital records**.

- *Illustrations*: a writing; words printed, lithographed or photographed; a map or plan; an inscription on a metal plate or stone; a caricature. **An electronic record on emails, server logs, documents on computers, laptops or smartphones, messages, websites, cloud storage, locational evidence and voicemail messages stored on digital devices** is a document.

Types

- **Public documents** (s.74(1)): acts or records of sovereign authorities, official bodies, tribunals and public officers (legislative, judicial and executive) of India or a foreign country, and public records of private documents kept in any State.
- **Private documents** (s.74(2)): all others.

Proof of contents (s.56, IEA 61): the contents of documents may be proved by **primary or secondary evidence**.

Q26. Primary and secondary evidence (ss. 57–60). *(Important)*

Primary evidence (s.57, IEA 62): the **document itself produced for the inspection of the court**.

- *Explanation 1*: where a document is executed in **several parts**, each part is primary evidence.
- *Explanation 2*: where a document is executed in **counterpart**, each counterpart is primary evidence against the parties executing it.
- *Explanation 3*: where documents are made by **one uniform process** (printing, lithography, photography), each is primary evidence of the contents of the rest, but not of the original.
- **Explanations 4–7 (new, electronic)**:
    - where an electronic or digital record is **created or stored**, and such storage occurs simultaneously or sequentially in **multiple files**, **each such file is primary evidence**;
    - where an electronic or digital record is **produced from proper custody**, it is primary evidence unless disputed;
    - a **video recording** stored simultaneously in electronic form and transmitted or broadcast is primary evidence;
    - storage in **multiple storage spaces** in a computer resource: each automated storage, including temporary files, is primary evidence.

Secondary evidence (s.58, IEA 63) includes:

i. **certified copies**;
ii. copies made from the original by **mechanical processes** that ensure accuracy, and copies compared with such copies;
iii. copies made from or compared with the original;
iv. **counterparts** of documents as against the parties who did not execute them;
v. **oral accounts** of the contents of a document given by a person who has seen it;
vi. **oral admissions** *(new)*;
vii. **written admissions** *(new)*;
viii. **evidence of a person who has examined a document** whose original consists of numerous accounts or other documents that cannot conveniently be examined in court, and who is skilled in examining such documents *(new)*.

Rule (s.59, IEA 64): **documents must be proved by primary evidence**, except in the cases mentioned below. This is the **best evidence rule**.

When secondary evidence may be given (s.60, IEA 65):

a. the original is in the **possession or power of the adverse party**, or of a person out of reach of or not subject to the court’s process, or of a person legally bound to produce it, and they fail to produce it after **notice (s.64)**;

b. the **existence, condition or contents** of the original are **admitted in writing** by the person against whom it is proved;
c. the original is **destroyed or lost**, or the party cannot produce it for reasons not arising from their own default or neglect;
d. the original is **not easily movable**;
e. the original is a **public document** (s.74);
f. the original is a document of which a **certified copy is permitted** by law;
g. the original consists of **numerous accounts or documents** that cannot conveniently be examined in court, and the fact to be proved is the general result.

In cases (a), (c) and (d), any secondary evidence is admissible. In (b), the written admission is admissible. In (e) and (f), only a certified copy. In (g), evidence of the general result by a skilled person.

Cases

- *J. Yashoda v. K. Shobha Rani* (2007): conditions under s.65 must be strictly proved before secondary evidence is admitted.
- *H. Siddiqui v. A. Ramalingam* (2011): a photocopy is inadmissible without the foundation required for secondary evidence.

Q27. Electronic and digital records; admissibility of electronic records (ss. 61–63) and the IT Act, 2000. *(Very important)*

s.61 (new): nothing in the Adhiniyam shall apply to **deny the admissibility of an electronic or digital record** on the ground that it is an electronic or digital record. Such a record shall, subject to s.63, have the **same legal effect, validity and enforceability** as other documents.

s.62 (IEA 65A): the contents of electronic records may be proved in accordance with **s.63**.

s.63 (IEA 65B): admissibility of electronic records

- **s.63(1)**: any information contained in an electronic record that is printed on paper, stored, recorded or copied in optical or magnetic media or **semiconductor memory** produced by a computer or **any communication device**, or otherwise stored, recorded or copied in any electronic form, is deemed to be a **document** (computer output) and is admissible **without further proof or production of the original**, if the conditions are satisfied.
- **s.63(2) conditions**:
  a. the computer or communication device was used **regularly** to create, store or process information by a person having **lawful control** over it;
  b. information of that kind was **regularly fed** in the ordinary course of activities;
  c. the computer or device was **operating properly** throughout the material period, or if not, the improper operation did not affect the record;
  d. the information reproduces or is derived from information fed in the ordinary course.

- **s.63(3)**: records from a **combination of computers or devices** are treated as one.
- **s.63(4) certificate**: a **certificate** identifying the record, describing the manner in which it was produced, and giving particulars of the device. It is signed by a **person in charge of the computer or communication device**, or the management of relevant activities, **and an expert**. It is in the format given in the **Schedule (Part A: by the party; Part B: by the expert)**.

Case law

- *State (NCT Delhi) v. Navjot Sandhu* (2005): a certificate under s.65B is **not mandatory**; secondary evidence can be given under ss.63 and 65. This was **overruled**.
- **Anvar P.V. v. P.K. Basheer** (2014, 3 judges): s.65B is a **complete code**. **A certificate is mandatory** for secondary electronic evidence, such as CDs. If the original (primary) device itself is produced, no certificate is needed.
- *Shafhi Mohammad v. State of H.P.* (2018): the certificate requirement is procedural and can be relaxed when the party is not in possession of the device. This was **overruled**.
- **Arjun Panditrao Khotkar v. Kailash Kushanrao Gorantyal** (2020, 3 judges): **reaffirmed Anvar**. The certificate is a **condition precedent**. It is **not required if the original device is produced** (by the owner stepping into the witness box). The certificate can be produced **at any stage** before the trial ends. If the authority refuses to give one, the court can summon it.
- *Tomaso Bruno v. State of U.P.* (2015): CCTV footage is good evidence; failure to produce it leads to an adverse inference.
- *Ravinder Singh @ Kaku v. State of Punjab* (2022): call detail records need a s.65B certificate.

Information Technology Act, 2000: relevant provisions

- s.2(1)(t): “electronic record”.
- s.3: authentication by digital signature. s.3A: electronic signature.
- **s.4**: **legal recognition of electronic records**.
- s.5: legal recognition of electronic signatures.
- s.10A: validity of contracts formed electronically.
- s.65: tampering with computer source documents.
- **s.79A**: Central Government notifies an **Examiner of Electronic Evidence**.
- The IT Act inserted ss.65A, 65B, 67A, 73A, 85A–85C, 88A and 90A into the IEA. These are now BSA ss.62, 63, 66, 73, 85–87, 90 and 93.

Presumptions about electronic records

- s.81 (IEA 81A): Gazettes in electronic form.
- **s.85 (IEA 85A)**: **electronic agreements** containing electronic signatures are presumed to be concluded.
- s.86 (IEA 85B): secure electronic records and signatures.
- s.87 (IEA 85C): electronic signature certificates.

- **s.90 (IEA 88, 88A)**: **electronic messages**. The court may presume that a message forwarded corresponds to the one fed in, but not as to the person who sent it.
- **s.93 (IEA 90A)**: **electronic records 5 years old** from proper custody are presumed to bear the electronic signature of the person affixing it.

Q28. Attested documents (ss. 64–73)

- **s.64 (IEA 66)**: **rules as to notice to produce**. Secondary evidence under s.60(a) is given only after **notice to produce** the document. Notice is not required when the document itself is a notice, when the adverse party knows they will be required to produce it, when the adverse party obtained it by fraud or force, when the adverse party or their agent has the original in court, or when the adverse party has admitted its loss.
- **s.65 (IEA 67)**: **proof of signature and handwriting** of the person alleged to have signed or written a document.
- **s.66 (IEA 67A)**: **proof of electronic signature**. Except for a secure electronic signature, the fact that it is the electronic signature of the subscriber must be proved.
- **s.67 (IEA 68)**: **proof of execution of a document required by law to be attested** (e.g. a **will**, a mortgage deed, a gift deed). It shall not be used as evidence until **at least one attesting witness has been called** for proving its execution, if one is alive, subject to the court's process and capable of giving evidence. *Proviso*: it is not necessary to call an attesting witness for a document (**other than a will**) **registered** under the Registration Act, unless its execution is **specifically denied**.
- **s.68 (IEA 69)**: **if no attesting witness is found**, or the document was executed in the UK, it must be proved that the attestation of one witness at least is in their handwriting, and the signature of the executant is in their handwriting.
- **s.69 (IEA 70)**: **admission of execution by a party** to an attested document is sufficient proof of execution against them.
- **s.70 (IEA 71)**: if the **attesting witness denies or does not recollect** the execution, it may be **proved by other evidence**.
- **s.71 (IEA 72)**: an attested document **not required by law to be attested** may be proved as if unattested.
- **s.72 (IEA 73)**: **comparison** of signature, writing or seal with others admitted or proved. The court may direct a person present in court to write words or figures for comparison. *Thiruvengadam Pillai v. Navaneethammal* (2008): courts should be cautious in comparing handwriting themselves.
- **s.73 (IEA 73A)**: **proof as to verification of a digital signature**. The court may direct production of the digital signature certificate, or the application of the public key.
- *Cases on wills*: *H. Venkatachala Iyengar v. B.N. Thimmajamma* (1959): the propounder must remove suspicious circumstances. *Janki Narayan Bhoir v. Narayan Namdeo Kadam* (2003): the attesting witness must prove attestation by both witnesses.

Q29. Public and private documents (ss. 74–77)

- **s.74(1)**: **public documents** are:
    i. documents forming the acts or records of the acts of (a) the **sovereign authority**, (b) **official bodies and tribunals**, (c) **public officers**, legislative, judicial and executive, of any part of India or of a foreign country;
    ii. **public records** kept in any State or UT of **private documents** (e.g. a registered sale deed copy in the Sub-Registrar's records).
- **s.74(2)**: all other documents are **private**.
- **s.75 (IEA 76)**: **certified copies of public documents**. Every public officer having custody of a public document that a person has a right to inspect shall give that person, on demand and payment of fees, a copy with a **certificate** that it is a true copy, dated and signed, and sealed where applicable.
- **s.76 (IEA 77)**: **proof of documents by production of certified copies**.
- **s.77 (IEA 78)**: **proof of other official documents** (Acts of the executive, proceedings of legislatures, proclamations, and so on), e.g. by the Gazette or a printed copy.

Public vs private document: a public document can be proved by a **certified copy** (secondary evidence) without accounting for the original. A private document must be proved by **primary evidence**, or by secondary evidence under s.60. There is a **presumption of genuineness** for certified copies (s.78). A private document must be proved by evidence of execution.

Q30. Presumptions regarding documents (ss. 78–93)

- **s.78 (IEA 79)**: **shall presume** genuineness of **certified copies**.
- **s.79 (IEA 80)**: **shall presume** that documents produced as a **record of evidence** (depositions, confessions) are genuine and that the statements were duly taken.
- **s.80 (IEA 81)**: Gazettes, newspapers, private Acts of Parliament, etc.
- **s.81 (IEA 81A)**: Gazettes in electronic form.
- s.82 (IEA 83): maps and plans made by the authority of Government.
- s.83 (IEA 84): collections of laws and reports of decisions.
- s.84 (IEA 85): **powers of attorney** executed before a notary.
- s.85: **electronic agreements**. s.86: secure electronic records and signatures. s.87: electronic signature certificates.
- s.88 (IEA 86): certified copies of foreign judicial records.
- s.89 (IEA 87): books, maps and charts.
- **s.90 (IEA 88, 88A)**: **telegraphic and electronic messages** (court may presume the message received matches the one sent, but not who sent it).
- s.91 (IEA 89): due execution of documents not produced after notice.
- **s.92 (IEA 90)**: **documents 30 years old**: if produced from **proper custody**, the court **may presume** the signature and handwriting are genuine and the document was duly executed and attested.
- **s.93 (IEA 90A)**: **electronic records 5 years old**: the same presumption about the electronic signature.

Q31. Exclusion of oral by documentary evidence (ss. 94–95). *(Important)*

s.94 (IEA 91): when the terms of a **contract, grant or any other disposition of property** have been **reduced to the form of a document**, and in all cases in which any matter is **required by law to be reduced to the form of a document**, **no evidence shall be given in proof of the terms** except the **document itself** or secondary evidence where admissible. This is the **best evidence rule**.

- *Exceptions*:
  - when a **public officer is required by law to be appointed in writing**, and it is shown that a particular person acted as such, the writing need not be proved;
  - **wills admitted to probate** may be proved by the probate.
- *Explanations*: the rule applies equally to contracts contained in one document or several. Where there is more than one original, only one need be proved. A statement of a fact other than the terms of the contract (e.g. that payment was made) can be proved by oral evidence.

s.95 (IEA 92): once the terms have been proved under s.94, **no evidence of any oral agreement or statement** shall be admitted between the **parties or their representatives** for the purpose of **contradicting, varying, adding to or subtracting from its terms**.

Six provisos:

1. Any fact that would **invalidate** the document or entitle a person to a decree, such as **fraud, intimidation, illegality, want of due execution, want of capacity, failure of consideration, or mistake** in fact or law.
2. A **separate oral agreement** on a matter on which the document is **silent** and which is **not inconsistent** with its terms (the court considers the degree of formality).
3. A separate oral agreement constituting a **condition precedent** to the attaching of any obligation.
4. A **distinct subsequent oral agreement** to **rescind or modify** the contract (unless the contract is required by law to be in writing, or is registered).
5. Any **usage or custom** by which incidents not expressly mentioned are usually annexed to contracts of that description, if not repugnant to the express terms.
6. Any fact that shows **in what manner the language of the document is related to existing facts**.

Section 94 vs Section 95: s.94 applies to **all persons** and excludes oral evidence **to prove the terms** of the document (the document is the best evidence). s.95 applies **only to parties** and their representatives, and excludes oral evidence **to vary or contradict** the terms. Strangers may give evidence varying the terms (s.102, IEA 99). s.94 applies to both bilateral and unilateral documents. s.95 applies only to bilateral documents (contracts, grants, dispositions).

Cases: *Bai Hira Devi v. Official Assignee of Bombay* (1958); *Gangabai v. Chhabubai* (1982): s.92 does not bar oral evidence to show that a document was a **sham** or never

intended to be acted upon. *Roop Kumar v. Mohan Thedani* (2003): explained ss.91 and 92 in detail.

Q32. Ambiguous documents (ss. 96–103, IEA 93–100)

Patent ambiguity: an ambiguity **apparent on the face** of the document. **Latent ambiguity**: an ambiguity that appears only when the document is **applied to existing facts**.

- **s.96 (IEA 93)**: **patent ambiguity**. When the language is, on its face, **ambiguous or defective**, evidence may **not** be given of facts that would show its meaning or supply its defects. *Illustration*: A agrees in writing to sell a horse to B for "Rs 1,000 or Rs 1,500". Evidence cannot be given to show which price was to be given.
- **s.97 (IEA 94)**: when the language is **plain** and applies accurately to existing facts, evidence may **not** be given to show that it was not meant to apply to such facts.
- **s.98 (IEA 95)**: when the language is plain but **unmeaning in reference to existing facts**, evidence may be given to show it was used in a peculiar sense. *Illustration*: "my house in Calcutta", where A has no house in Calcutta but has one at Howrah.
- **s.99 (IEA 96)**: when the language is meant to apply to **one only of several persons or things** but could apply to any of them (equivocation), evidence may be given to show **which one was intended**. *Illustration*: "my white horse", where A has two white horses. This is a **latent ambiguity**.
- **s.100 (IEA 97)**: when language applies **partly to one set of existing facts and partly to another**, but not accurately to either, evidence may be given to show which it was meant to apply to.
- **s.101 (IEA 98)**: evidence may be given to show the meaning of **illegible or not commonly intelligible characters**, of foreign, obsolete, technical or local expressions, and of abbreviations.
- **s.102 (IEA 99)**: **persons who are not parties** to a document, or their representatives, may give evidence of any facts tending to show a **contemporaneous agreement varying the terms** of the document.
- **s.103 (IEA 100)**: saving of the provisions of the Indian Succession Act relating to wills.

MODULE 5 — WITNESSES

Q33. Competency and compellability of witnesses; who may testify (s.124, IEA 118)

s.124: **all persons shall be competent to testify** unless the court considers that they are **prevented from understanding the questions** put to them, or from giving rational answers to those questions, because of **tender years, extreme old age, disease (of body or mind) or any other cause** of the same kind.

- *Explanation*: a **person of unsound mind** is competent unless prevented by that unsoundness from understanding questions and giving rational answers.

Competency is whether a person **can** legally give evidence. **Compellability** is whether they **can be forced** to give evidence. Generally every competent witness is compellable, with **exceptions**:

- foreign sovereigns and ambassadors;
- the President and Governors (Art. 361);
- privileged persons (judges under s.127, spouses under s.128, and so on), who are compellable to appear but **privileged** from answering certain questions;
- the **accused** is a competent witness for the defence only on their own request (BNSS s.353), and is **not compellable** (Art. 20(3)).

Child witness

- There is **no minimum age**. The test is **intelligence and understanding**. The judge conducts a **preliminary examination (voir dire)** to test competency.
- The Oaths Act, 1969, s.4: a child **under 12** is not administered an oath. The evidence is still admissible.
- A child's evidence must be scrutinised carefully because children are susceptible to **tutoring**. Corroboration is a rule of prudence, not of law.
- *Rameshwar v. State of Rajasthan* (1952); *Dattu Ramrao Sakhare v. State of Maharashtra* (1997): a child witness is competent if able to understand questions; corroboration is not essential. *State of M.P. v. Ramesh* (2011); *Pradeep v. State of Haryana* (2023).

Q34. Witness unable to communicate verbally (s.125, IEA 119)

A witness **unable to speak** may give evidence in any other manner by which they can make it intelligible, such as **by writing or by signs**. The writing must be written and the signs made in **open court**. This evidence is deemed **oral evidence**.

- *Proviso*: if the witness is unable to communicate verbally, the court shall take the assistance of an **interpreter or a special educator** in recording the statement, and the statement **shall be videographed**.

Q35. Examination and competency of parties, spouses and judges (ss. 126–127)

- **s.126 (IEA 120)**: in civil proceedings, **parties and their spouses** are competent witnesses. In criminal proceedings against any person, the **spouse** of that person is a competent witness.
- **s.127 (IEA 121)**: **judges and Magistrates** shall not, except on the special order of a superior court, be **compelled** to answer questions about their **own conduct in court** as judges, or about anything that came to their knowledge in court as such. They may be examined about other matters that occurred in their presence while acting as judges.

Q36. Privileged communications (ss. 128–134). *(Important)*

Privilege: certain communications are **protected from disclosure** on grounds of **public policy**, even though they are relevant.

1. **Matrimonial privilege (s.128, IEA 122)**
    - No person who **is or has been married** shall be **compelled** to disclose any **communication made to them during marriage** by their spouse. Nor shall they be **permitted** to disclose it, **unless the person who made it, or their representative in interest, consents**.
    - **Exceptions**: suits between married persons, or proceedings in which one spouse is prosecuted for a crime committed against the other.
    - The privilege applies **only to communications**, not to **acts** observed (*Ram Bharosey v. State of U.P.*, 1954: the wife could testify about her husband's acts, such as seeing him with ornaments).
    - It continues **after divorce or death** for communications made during the marriage (*M.C. Verghese v. T.J. Ponnan*, 1970: letters from a husband to his wife could not be disclosed by the father-in-law in a defamation case, as they were privileged). The communication must be **during a valid marriage**.
2. **State privilege: affairs of State (s.129, IEA 123)**
    - No one shall be permitted to give evidence derived from **unpublished official records relating to affairs of State**, except with the permission of the **head of the department**, who gives or withholds it as they think fit.
    - The **court has the final say** on whether a document relates to affairs of State. It may **inspect** the document.
    - *State of Punjab v. Sodhi Sukhdev Singh* (1961); **State of U.P. v. Raj Narain** (1975: the "Blue Book" on the PM's security was considered; the court can inspect in camera); *S.P. Gupta v. UOI* (1981: correspondence on judges' appointments was disclosed; the public interest in disclosure was balanced against harm); *Yashwant Sinha v. CBI* (2019, Rafale review: documents could be considered).
3. **Official communications (s.130, IEA 124)**: no public officer shall be **compelled** to disclose communications made to them **in official confidence**, when they consider that the **public interest would suffer** by the disclosure.
4. **Information as to commission of offences (s.131, IEA 125)**: no **Magistrate or police officer** shall be compelled to say **from where they got any information** about the commission of an offence. No revenue officer shall be compelled to say from where they got information about an offence against the public revenue. This protects **informers**.

Q37. Professional privilege (ss. 132–134, IEA 126–129)

- **s.132 (IEA 126)**: no **advocate** shall at any time be **permitted**, **unless with the client's express consent**, to disclose any communication made to them in the course of and for the purpose of their employment, or the contents or condition of any document they became acquainted with, or any advice given.
    - **Exceptions**:

        - a. any communication made **in furtherance of an illegal purpose**;
        - b. any fact observed by the advocate showing that a **crime or fraud has been committed** since the start of their employment.
    - The obligation **continues after the employment has ceased**.
- **s.133 (IEA 128)**: the **privilege is not waived** merely because the client gives evidence. If the client **calls the advocate as a witness**, it is deemed waived only for the matters on which the advocate is questioned.
- **s.134 (IEA 129)**: **confidential communications with legal advisers**. No one shall be compelled to disclose confidential communications with their legal adviser, unless they offer themselves as a witness, in which case they may be compelled to disclose communications needed to explain evidence they have given.
- Interpreters, clerks and servants of advocates are bound by the same duty (IEA 127, merged).
- **Rationale**: to secure **free and frank communication** between client and lawyer, which is essential for the administration of justice.

Q38. Other provisions as to witnesses (ss. 135–137)

- **s.135 (IEA 130)**: a witness who is **not a party** to a suit shall not be compelled to produce their **title deeds** or any document by which they hold property as a mortgagee, or any document that might **tend to incriminate** them, unless they agree in writing.
- **s.136 (IEA 131)**: no one shall be compelled to produce documents in their possession, or electronic records under their control, that another person in whose possession they would be entitled to refuse to produce them, unless that other person consents.
- **s.137 (IEA 132)**: a witness **shall not be excused from answering** any question relevant to the matter in issue on the ground that the answer will **criminate** them, or expose them to a penalty or forfeiture. *Proviso*: **no such answer that they are compelled to give shall subject them to arrest or prosecution**, or be proved against them in any criminal proceeding, **except a prosecution for giving false evidence**. This is **protection against self-incrimination** for witnesses (it is related to Art. 20(3) but different, because it is a statutory immunity).

Q39. Accomplice and number of witnesses (ss. 138–139). *(Important)*

Accomplice: a **guilty associate** in crime, i.e. a person who participated in the commission of the crime (*R v. Baskerville*, 1916). It includes a **principal** and an **abettor**. An **approver** is an accomplice who has been granted a pardon (BNSS s.343).

s.138 (IEA 133): **an accomplice shall be a competent witness** against an accused person. A **conviction is not illegal merely because** it proceeds upon the **uncorroborated testimony of an accomplice**.

s.119 illustration (b) (IEA 114 ill. (b)): the court **may presume** that an **accomplice is unworthy of credit, unless corroborated in material particulars**.

Reconciling s.138 and s.119(b)

- s.138 is a **rule of law**: uncorroborated accomplice evidence can legally sustain a conviction.
- s.119(b) is a **rule of prudence**: as a matter of caution, courts **require corroboration in material particulars**.
- In practice, courts **insist on corroboration**, so the rule of prudence has almost hardened into a rule of law.
- *Bhuboni Sahu v. The King* (1949); **Rameshwar v. State of Rajasthan** (1952): corroboration need not be of every detail but must **connect the accused with the crime**; it must be **independent**. *Haroon Haji Abdulla v. State of Maharashtra* (1968): one accomplice cannot corroborate another. *K. Hashim v. State of T.N.* (2005); *Sarwan Singh v. State of Punjab* (1957): double test of reliability.
- **Nature of corroboration** (*Baskerville*): it must be **independent** and must **implicate the accused** in a material particular.
- A **victim of rape is not an accomplice**. Her evidence does not need corroboration (*State of Punjab v. Gurmit Singh*, 1996; *Bharwada Bhoginbhai*, 1983).

Number of witnesses (s.139, IEA 134): **no particular number of witnesses** is required for the proof of any fact. **Evidence must be weighed, not counted.**

- *Vadivelu Thevar v. State of Madras* (1957): a conviction can be based on the testimony of a **single witness** if wholly reliable. Witnesses fall into three categories: wholly reliable, wholly unreliable, and neither wholly reliable nor wholly unreliable. Corroboration is needed for the third category.
- Exceptions where statutes require more: e.g. perjury (traditionally), and a will requires two attesting witnesses.

MODULE 6 — BURDEN OF PROOF

Q40. Burden of proof and standard of proof in civil and criminal cases

Burden of proof (onus probandi): the obligation to **prove a fact**. It has two meanings:

1. **Legal burden / burden of establishing a case** (s.104): this **never shifts**. It lies on the party who asserts the affirmative of the issue.
2. **Evidential burden / burden of adducing evidence** (s.105): this **shifts** constantly during the trial as evidence is produced.

Standard of proof

- **Civil cases**: **preponderance of probabilities** (balance of probabilities).
- **Criminal cases**: **beyond reasonable doubt**. *Woolmington v. DPP* (1935): “throughout the web of the English criminal law one golden thread is always to be seen, that it is the duty of the prosecution to prove the prisoner’s guilt.”
- **Accused’s burden** (general exceptions and so on): only a **preponderance of probabilities**, not beyond reasonable doubt (*Dahyabhai Chhaganbhai Thakker v. State of Gujarat*, 1964; *Rabindra Kumar Dey v. State of Orissa*, 1976).

- Reasonable doubt must be **real and substantial**, not imaginary or fanciful (*Krishnan v. State*, 2003).

Q41. General conception of burden of proof (ss. 104–107, IEA 101–104)

- **s.104 (IEA 101)**: whoever desires any court to give judgment as to any legal right or liability dependent on the existence of facts they assert **must prove that those facts exist**. The burden lies on the person **who asserts**: "he who asserts must prove" (*ei incumbit probatio qui dicit, non qui negat*).
- **s.105 (IEA 102)**: **on whom the burden lies**: on the person **who would fail if no evidence at all were given on either side**. (Test: who would lose if no evidence were given?)
- **s.106 (IEA 103)**: the burden of proof as to **any particular fact** lies on the person who wishes the court to **believe in its existence**, unless a law provides otherwise. *Illustration*: A prosecutes B for theft and wants the court to believe B admitted it to C. A must prove the admission. **Alibi**: the accused must prove it.
- **s.107 (IEA 104)**: the burden of proving any **fact necessary to make evidence admissible** lies on the person who wishes to give that evidence. *Illustration*: to prove a dying declaration, A must prove B's death. To give secondary evidence, A must prove the original was lost.

Q42. General and special exceptions to burden of proof (ss. 108–116, IEA 105–112)

- **s.108 (IEA 105)**: **burden on the accused to prove a case within general exceptions** (BNS Chapter III, e.g. private defence, insanity, accident, intoxication), within a special exception or proviso in the BNS, or within any other law. **The court shall presume the absence of such circumstances.** The standard is a preponderance of probabilities. *K.M. Nanavati v. State of Maharashtra* (1962): the burden of proving grave and sudden provocation was on the accused. *Dahyabhai* (1964): insanity.
- **s.109 (IEA 106)**: when any fact is **especially within the knowledge** of any person, the **burden of proving that fact is upon them**. *Illustration*: a person travelling without a ticket must prove they had one. *Shambhu Nath Mehra v. State of Ajmer* (1956): **s.106 does not relieve the prosecution of its burden**; it applies only to facts **pre-eminently** within the accused's knowledge. **Trimukh Maroti Kirkan v. State of Maharashtra** (2006): in a death in the matrimonial home, the husband must explain; failure gives rise to an adverse inference.
- **s.110 (IEA 107)**: when it is shown that a person was **alive within 30 years**, the burden of proving they are dead is on the person who affirms it.
- **s.111 (IEA 108)**: when a person has **not been heard of for 7 years** by those who would naturally have heard of them, the burden of proving they are **alive** shifts to the person who affirms it. (There is a presumption of death, but **not of the time** of death.)
- **s.112 (IEA 109)**: burden in relationships of **partners, landlord and tenant, principal and agent**: the person who asserts that the relationship has ceased must

prove it.

- **s.113 (IEA 110)**: **ownership**. A person in possession is presumed to be the owner. The burden is on the person who affirms they are not.
- **s.114 (IEA 111)**: **good faith in transactions where one party is in a position of active confidence** (fiduciary relationship). The burden of proving good faith is on the person in active confidence. Examples: lawyer and client, guardian and ward, parent and child, doctor and patient.
- **s.115 (IEA 111A)**: presumption of guilt in certain offences in **disturbed areas** (e.g. under AFSPA).
- **s.116 (IEA 112)**: **birth during marriage is conclusive proof of legitimacy**: a birth during a valid marriage, or **within 280 days after its dissolution** (the mother remaining unmarried), unless it is shown the parties had **no access** to each other at any time when the child could have been begotten.
    - *Goutam Kundu v. State of W.B.* (1993): courts cannot order DNA tests as a matter of course; a strong prima facie case of non-access is needed.
    - **Nandlal Wasudeo Badwaik v. Lata Nandlal Badwaik** (2014): when a **DNA test** is scientifically accurate, it **prevails over the conclusive presumption**.
    - *Aparna Ajinkya Firodia v. Ajinkya Arun Firodia* (2023): DNA tests should be ordered only in exceptional cases; the child's interest is paramount.
- **s.117 (IEA 113A)**: presumption of **abetment of suicide by a married woman** within **7 years of marriage**, if subjected to **cruelty** by the husband or his relatives (court **may presume**).
- **s.118 (IEA 113B)**: presumption of **dowry death**. If it is shown that **soon before her death** the woman was subjected to **cruelty or harassment in connection with a demand for dowry**, the court **shall presume** the person caused the dowry death. *Kans Raj v. State of Punjab* (2000); *Satbir Singh v. State of Haryana* (2021): "soon before" means there must be a **proximate and live link**.

Q43. Court may presume existence of certain facts (ss. 119–120, IEA 114, 114A)

s.119 (IEA 114): the court **may presume** the existence of any fact it thinks likely to have happened, having regard to the **common course of natural events, human conduct, and public and private business**.

Illustrations:

- a. a person in **possession of stolen goods soon after the theft** is either the thief or has received the goods knowing them to be stolen, unless they can account for possession (*Sanjay v. State (NCT of Delhi)*, 2001);
- b. an **accomplice is unworthy of credit** unless corroborated in material particulars;
- c. a bill of exchange was accepted for good consideration;
- d. a thing or state of things shown to exist continues to exist;
- e. judicial and official acts have been **regularly performed**;
- f. the common course of business has been followed;

- g. evidence that could be and is **not produced would be unfavourable** to the person who withholds it (adverse inference);
- h. if a person refuses to answer a question they are not compelled to answer by law, the answer would be unfavourable to them;
- i. when a document creating an obligation is in the hands of the obligor, the obligation has been discharged.

s.120 (IEA 114A): presumption as to **absence of consent** in certain prosecutions for **rape** (BNS s.64(2)). If sexual intercourse is proved and the woman states in court that she **did not consent**, the court **shall presume** that she did not consent.

Q44. Doctrine of judicial notice (ss. 51–52)

Meaning: some facts are so **notorious or well known** that they **need not be proved**. The court takes notice of them on its own.

- **s.51 (IEA 56)**: **no fact of which the court will take judicial notice need be proved.**
- **s.52 (IEA 57)**: **facts of which the court shall take judicial notice**:
  - a. **all laws in force** in the territory of India, including laws having extra-territorial operation;
  - b. **international treaties**, agreements or conventions with countries, and decisions made by India at international associations or bodies;
  - c. the course of proceedings of the **Constituent Assembly**, of Parliament and of State legislatures;
  - d. the **seals** of all courts and tribunals;
  - e. seals of courts of admiralty, notaries, and seals that persons are authorised to use under the Constitution or law;
  - f. the accession to office, names, titles, functions and signatures of persons holding public office, if notified in the Official Gazette;
  - g. the existence, title and national flag of every country recognised by the Government of India;
  - h. the **divisions of time**, the **geographical divisions** of the world, and public festivals, fasts and holidays notified in the Official Gazette;
  - i. the territory of India;
  - j. the commencement, continuance and termination of **hostilities** between India and another country;
  - k. the names of members and officers of the court, and of advocates and others authorised to appear;
  - l. the **rule of the road** on land or at sea.
- **s.52(2)**: in these cases, and on matters of **public history, literature, science or art**, the court may **resort to appropriate books or documents of reference**. If called on to take judicial notice, the court may refuse unless the person produces such a book or document.
- **Scope**: the list is not exhaustive. Courts may take notice of **notorious facts** of common knowledge (e.g. that the sun rises in the east, or the fact of the Emergency of 1975).

Q45. Facts admitted need not be proved (s.53, IEA 58)

- **No fact need be proved** in any proceeding which the parties or their agents **agree to admit at the hearing**, or which they agree to admit in writing **before the hearing**, or which they are deemed to have admitted by their pleadings.
- *Proviso*: the court may, in its discretion, **require the facts admitted to be proved** otherwise than by such admissions.
- This covers **judicial admissions** (formal admissions), which are binding. Compare **s.15 admissions**, which are evidentiary and rebuttable.
- In **criminal cases**, an admission by the accused **cannot relieve the prosecution** of proving its case (except in limited areas such as BNSS s.330, admitting genuineness of documents).

MODULE 7 — ORAL EVIDENCE

Q46. Oral evidence: general principles and exceptions to hearsay

s.54 (IEA 59): **all facts, except the contents of documents (or electronic records), may be proved by oral evidence.**

s.55 (IEA 60): **oral evidence must, in all cases whatever, be direct**:

- a fact that could be **seen**: the evidence of a witness who says **they saw it**;
- a fact that could be **heard**: a witness who says **they heard it**;
- a fact that could be perceived by **any other sense**: a witness who says **they perceived it** by that sense;
- an **opinion or the grounds** on which it is held: the evidence of the person who holds that opinion.
- *Provisos*: opinions of experts in treatises commonly offered for sale may be proved by producing the treatise if the author is dead, cannot be found or cannot be called without unreasonable delay. The court may require **material things** referred to in oral evidence to be produced for inspection.

Hearsay rule: s.55 **excludes hearsay**.

- Reasons: the evidence is not on oath; there is no opportunity of cross-examination; the original speaker’s demeanour cannot be seen; the risk of distortion grows with repetition; and it encourages fraud.

Exceptions to the hearsay rule

1. **Res gestae** (s.4).
2. **Admissions and confessions** (ss.15–24).
3. **Statements of persons who cannot be called** as witnesses, including **dying declarations** (s.26).
4. **Evidence given in a former proceeding** (s.27, IEA 33). It is relevant in a later proceeding when the witness is dead, cannot be found, or is incapable of giving

evidence, if the proceeding was between the **same parties**, the adverse party had the **right and opportunity to cross-examine**, and the **questions in issue were substantially the same**.

5. **Statements in public documents**, books of account, maps and so on (ss.28–32).
6. **Expert opinion in treatises** (s.55 proviso).
7. **Statements in conspiracy** (s.8).
8. **Common reputation** about public rights or customs (s.42).

Q47. Examination-in-chief, cross-examination and re-examination; general principles of examination (ss. 140–168). *(Important)*

- **s.140 (IEA 135)**: the **order of production and examination of witnesses** is regulated by the law and practice of civil and criminal procedure, or by the court's discretion.
- **s.141 (IEA 136)**: the **judge decides the admissibility** of evidence. They may ask the party proposing to give evidence how it would be relevant.
- **s.142 (IEA 137)**: definitions:
  - **Examination-in-chief**: the examination of a witness **by the party who calls them**.
  - **Cross-examination**: examination **by the adverse party**.
  - **Re-examination**: examination of a witness, **subsequent to cross-examination**, by the party who called them.
- **s.143 (IEA 138)**: **order of examinations**. The witness is first examined-in-chief, then (if the adverse party so desires) cross-examined, then (if the party calling them so desires) re-examined.
  - Examination-in-chief and cross-examination must relate to **relevant facts**. Cross-examination **need not be confined** to facts the witness testified to in chief.
  - **Re-examination** is directed to the **explanation of matters referred to in cross-examination**. If new matter is introduced by permission of the court, the adverse party may further cross-examine on it.
- **s.144 (IEA 139)**: a person summoned **only to produce a document** does not become a witness and cannot be cross-examined unless called as a witness.
- **s.145 (IEA 140)**: **witnesses to character** may be cross-examined and re-examined.
- **s.147 (IEA 144)**: evidence as to matters in writing.
- **s.148 (IEA 145)**: **cross-examination as to previous statements in writing** (or reduced into writing, or in electronic form). Before the writing is proved, the witness's **attention must be drawn** to the parts used to **contradict** them. This is used to contradict with BNSS s.181 statements (*Tahsildar Singh v. State of U.P.*, 1959).
- **s.150 (IEA 147)**: when a witness is to be compelled to answer.
- **s.151 (IEA 148)**: court to decide when a question shall be asked and when a witness is compelled to answer.
- **s.152 (IEA 149)**: question not to be asked **without reasonable grounds**.

- **s.153 (IEA 150)**: procedure of the court in case of a question being asked without reasonable grounds. The court may report the advocate.
- **s.154 (IEA 151)**: the court may forbid **indecent and scandalous questions**.
- **s.155 (IEA 152)**: the court shall forbid questions **intended to insult or annoy**.
- **s.156 (IEA 153)**: **exclusion of evidence to contradict answers to questions testing veracity** (collateral matters). The answer is final, except: (a) a previous conviction may be proved if denied; (b) questions impeaching **impartiality** may be contradicted.
- **s.159 (IEA 156)**: questions tending to **corroborate** evidence of a relevant fact are admissible.
- **s.160 (IEA 157)**: **former statements of a witness may be proved to corroborate** later testimony, if made at or about the time the fact took place, or before any authority competent to investigate.
- **s.161 (IEA 158)**: what matters may be proved in connection with a proved statement relevant under s.26 or s.27.
- **s.163 (IEA 160)**: testimony to facts stated in a document used to refresh memory.
- **s.164 (IEA 161)**: **right of the adverse party** to inspect and cross-examine on a writing used to refresh memory.
- **s.165 (IEA 162)**: **production of documents**. A witness summoned to produce a document must bring it, notwithstanding any objection. The court decides the validity of the objection and may inspect the document (except one relating to affairs of State). A translator must keep its contents secret.
- **s.166 (IEA 163)**: giving as evidence a document called for and produced on notice.
- **s.167 (IEA 164)**: using as evidence a document whose production was refused on notice.
- **s.168 (IEA 165)**: **judge's power to put questions or order production**. The judge may, to discover or obtain proof of relevant facts, **ask any question** they please, in any form, at any time, of any witness or party, about any fact, relevant or irrelevant, and **order production** of any document or thing. Neither the parties nor their agents can object to any such question or order. The parties cannot cross-examine any witness on the answer without the court's leave. *Limits*: the judgment must be based on facts declared relevant; the judge cannot compel answers privileged under ss.128–137; and cannot ask questions that would be improper under ss.151–152.

Object of cross-examination

1. To **test the veracity** and credibility of the witness.
2. To **discover who they are** and what their position in life is.
3. To **shake their credit** by injuring their character.
4. To elicit facts favourable to the cross-examining party.
5. To bring out **contradictions** and omissions.

Q48. Leading questions (s.146, IEA 141–143)

- **Definition**: any question **suggesting the answer** that the person putting it **wishes or expects to receive**. Example: "Did you see A stab B with a knife?", where the

expected answer is yes.
- **When they must not be asked**: in **examination-in-chief or re-examination**, if objected to by the adverse party, **except with the permission of the court**.
- **The court shall permit** leading questions on matters that are **introductory or undisputed**, or that in its opinion have already been **sufficiently proved**.
- **When they may be asked**: in **cross-examination**. Also with the court's permission in examination-in-chief for **hostile witnesses** (s.157) and for identification.

Q49. Lawful questions in cross-examination (s.149, IEA 146)

When a witness is cross-examined, they may, in addition to the questions referred to above, be asked any questions that tend:

a. to **test their veracity**;
b. to discover **who they are and their position in life**;
c. to **shake their credit** by injuring their character, even if the answer might tend directly or indirectly to criminate them, expose them to a penalty or forfeiture.

Proviso (rape cases): in prosecutions for rape (BNS ss.64–71, 74–79), it **shall not be permissible** to adduce evidence or put questions in cross-examination about the victim's **general immoral character or previous sexual experience** with any person for proving consent or the quality of consent.

Q50. Hostile witness (s.157, IEA 154). ***(Important)***

- **s.157(1)**: the court may, in its discretion, **permit the person who calls a witness to put any questions to them which might be put in cross-examination** by the adverse party.
- **s.157(2)**: this does not disentitle the person so permitted to rely on any part of the witness's evidence.
- The term "**hostile witness**" is **not used** in the Act. It means a witness who **resiles** from a previous statement, or who is not desirous of telling the truth at the instance of the party calling them, i.e. shows an **adverse animus**.
- **Evidentiary value**:
  - The evidence of a hostile witness is **not effaced or washed off** the record. The part that is **reliable and consistent** with the prosecution case can be accepted.
  - *Sat Paul v. Delhi Administration* (1976).
  - **Bhagwan Singh v. State of Haryana** (1976).
  - *Khujji @ Surendra Tiwari v. State of M.P.* (1991).
  - *Koli Lakhmanbhai Chanabhai v. State of Gujarat* (1999).
  - *State v. Sanjeev Nanda* (BMW case, 2012): hostile witnesses were criticised, and the court discussed **witness protection**.
- **Reasons witnesses turn hostile**: threats, inducement, delay in trial, lack of witness protection, money power. Remedies include the **Witness Protection Scheme** (*Mahender Chawla v. UOI*, 2018; BNSS s.398) and **prosecution for perjury**. *Zahira Habibullah Sheikh* (2004) is the leading example.

Q51. Impeaching the credit of a witness (s.158, IEA 155)

The credit of a witness may be impeached by the **adverse party**, or, with the court's consent, by the party calling them:

a. by the evidence of persons who testify that they, from their knowledge of the witness, believe them to be **unworthy of credit**;
b. by proof that the witness has been **bribed**, has accepted the offer of a bribe, or has received any other **corrupt inducement** to give evidence;
c. by proof of **former statements inconsistent** with any part of their evidence that is liable to be contradicted.

Note: the former clause (d), about the character of a rape prosecutrix, was **deleted in 2003**. It is not found in the BSA.

Impeaching credit vs contradicting: contradiction (s.148) is one method of impeaching credit. Impeaching is wider: it attacks the **general trustworthiness** of the witness.

Q52. Refreshing memory (ss. 162–164, IEA 159–161)

- **s.162(1)**: a witness may, while under examination, **refresh their memory** by referring to any writing made by themselves **at the time of the transaction** concerning which they are questioned, **or so soon afterwards** that the court considers it likely the transaction was at that time **fresh in their memory**.
- They may also refer to a writing made by **any other person** and **read by the witness within that time**, if they knew it to be correct when they read it.
- With the court's permission, a **copy** may be used if there is sufficient reason for not producing the original.
- An **expert** may refresh their memory by reference to professional treatises.
- **s.163**: a witness may also testify to facts mentioned in such a document even if they have no specific recollection of the facts, if they are sure the facts were correctly recorded.
- **s.164**: the **adverse party** may **inspect the writing** and **cross-examine** the witness on it. Police officers refresh memory from the **case diary** (BNSS s.192); the accused can then see those entries.

MODULE 8 — ESTOPPEL

Q53. What is estoppel? Estoppel, res judicata, waiver and presumption. *(Important)*

s.121 (IEA 115): when one person has, **by their declaration, act or omission**, **intentionally caused or permitted another person to believe a thing to be true** and to **act upon such belief**, neither they nor their representative shall be allowed, in any suit or proceeding between themselves and such person or their representative, to **deny the truth of that thing**.

Illustration: A intentionally and falsely leads B to believe that certain land belongs to A, and thereby induces B to buy and pay for it. The land afterwards becomes A's property, and A seeks to set aside the sale on the ground that he had no title at the time of the sale. He must not be allowed to prove his want of title.

Essentials

1. A **representation** of an **existing fact** (not of law, and not of future intention), by declaration, act or omission.
2. It was made **intentionally** (or with a culpable negligence that permitted the belief).
3. The other person **believed** it to be true.
4. That person **acted upon it** to their **detriment** (altered their position).
5. The proceeding is **between the same parties** or their representatives.

Nature: estoppel is a **rule of evidence**, not a cause of action. It is "a **shield, not a sword**". It **cannot override a statute** (there is **no estoppel against a statute**), and there is no estoppel on a point of law.

- *Pickard v. Sears* (1837) is the origin of the rule.
- *Sarat Chunder Dey v. Gopal Chunder Laha* (1892, Privy Council).
- *B.L. Sreedhar v. K.M. Munireddy* (2003).

Kinds of estoppel

1. **Estoppel by record** (judgment): this is **res judicata**.
2. **Estoppel by deed**.
3. **Estoppel in pais** (by conduct): this is s.121.
4. **Equitable / promissory estoppel**.
5. **Tenant estoppel** (s.122) and **estoppel of the acceptor of a bill, bailee or licensee** (s.123).

Estoppel vs res judicata

Estoppel	Res judicata
Arises from the **act of parties**	Arises from a **decision of the court**
Prevents a party from saying **one thing at one time and the opposite at another**	Prevents a party from **litigating the same matter twice** (it ousts the jurisdiction of the court)
A rule of **evidence** (BSA s.121)	A rule of **procedure** (CPC s.11)
Prevents a person from **denying a fact**	Prevents **a fresh trial** of the matter
Based on **equity**	Based on **public policy**: finality of litigation

Estoppel vs waiver

- **Waiver** is the **intentional relinquishment of a known right** (*Indu Shekhar Singh v. State of U.P.*, 2006). It is contractual and voluntary and needs no detriment to the other party.

- **Estoppel** is a rule of evidence and requires the other party's **detrimental reliance**.
- Waiver involves **abandonment of a right**. Estoppel prevents the **denial of a representation**.

Estoppel vs presumption: a presumption is an inference the court draws (rebuttable or conclusive). Estoppel **prevents a party from proving** the contrary of what they represented. It operates like a conclusive presumption, but **only between the parties**.

Tenant estoppel (s.122, IEA 116): no **tenant** of immovable property, or person claiming through them, shall during the **continuance of the tenancy** be permitted to deny that the **landlord had a title** to the property **at the beginning of the tenancy**. No person who came on the property by the **licence** of the person in possession shall be permitted to deny that such person had a title to possession at the time the licence was given.

s.123 (IEA 117): estoppel of the **acceptor of a bill of exchange** (cannot deny the drawer's authority to draw), of a **bailee** (cannot deny the bailor's authority to bail), and of a **licensee** (cannot deny the licensor's authority).

Q54. Promissory estoppel (ss. 121–123). *(Important)*

Meaning: where one party, by words or conduct, makes a **clear and unequivocal promise** intended to **create legal relations** or affect a legal relationship, **knowing or intending** that it would be **acted upon**, and the other party **acts upon it** (alters their position), the promisor **cannot go back** on the promise if it would be **inequitable** to do so, even without **consideration**.

Origin: **Central London Property Trust Ltd. v. High Trees House Ltd.** (1947, Denning J). A promise to accept reduced rent during the war was binding for that period.

In India

- **Union of India v. Indo-Afghan Agencies Ltd.** (1968): the Government is bound by its promise under an export promotion scheme. The Government is not exempt from equity.
- **Motilal Padampat Sugar Mills v. State of U.P.** (1979, Bhagwati J): the **landmark** case. The Government's promise of a **sales tax exemption** for 3 years induced the setting up of a factory. The Government was **bound** by promissory estoppel. The **plea of executive necessity is not available**. It can be used as a **cause of action** (a sword) in India.
- *Jit Ram v. State of Haryana* (1980): diluted Motilal. This was later disapproved in *Union of India v. Godfrey Philips India* (1985).
- *Union of India v. Godfrey Philips India Ltd.* (1985): **no promissory estoppel against the legislature** in the exercise of its legislative functions, nor to compel the Government to do something **contrary to law**.
- *State of Punjab v. Nestle India Ltd.* (2004): the Government is bound unless overriding public interest requires otherwise.
- *M.P. Mathur v. DTC*; *MRF Ltd. v. Assistant Commissioner* (2006).

Limitations

1. There is no promissory estoppel **against a statute** or the legislature.
2. It is not available where the promise is **ultra vires** or illegal.
3. The Government can resile if there is an **overriding public interest**, with **reasonable notice**.
4. The promise must be clear and unequivocal.
5. The promisee must have **altered their position**.
6. It does not apply where fraud or misrepresentation is involved.

Promissory estoppel vs equitable estoppel (s.121): s.121 relates to a representation of an **existing fact**. Promissory estoppel relates to a **promise about the future**. Promissory estoppel is an equitable doctrine developed by the courts and is not strictly within s.121.

Q55. Effect of improper admission and rejection of evidence in civil and criminal cases (s.169, IEA 167)

s.169: the **improper admission or rejection of evidence** shall **not be a ground of itself for a new trial or reversal** of any decision in any case, if it appears to the court before which the objection is raised that:

- **independently of the evidence objected to and admitted**, there was **sufficient evidence to justify the decision**; or
- if the **rejected evidence had been received**, it **ought not to have varied the decision**.

Principle: it applies to **both civil and criminal cases**. The appellate court asks whether the error **affected the result**. If it did not, the decision stands.

- *Example*: if a confession to police was wrongly admitted, the appellate court **excludes it** and examines whether the rest of the evidence is enough to convict.
- **Objection** to admissibility should be raised **at the time** the evidence is tendered. Objection to the **mode of proof** is lost if not raised at trial, but objection to **inherent inadmissibility** can be raised at any stage (*R.V.E. Venkatachala Gounder v. Arulmigu Viswesaraswami & V.P. Temple*, 2003).
- The rule is similar to BNSS s.511 (CrPC 465) and CPC s.99, which say no reversal unless there is a failure of justice.

Exam tips

1. Always write the **BSA section and the IEA section in brackets**.
2. For **long answers**, write: definition, essentials, illustration, cases, the BSA change, and a conclusion.
3. **Must-know cases**: Pakala Narayana Swami, Pulukuri Kottaya, Palvinder Kaur, Kashmira Singh, Khushal Rao, Laxman, Anvar P.V., Arjun Panditrao Khotkar, Sharad Birdhichand Sarda, Vadivelu Thevar, Woolmington, Shambhu Nath Mehra, Motilal Padampat, Ram Bharosey, Raj Narain, Mirza Akbar, Bedingfield, Ratten.